

FAMILY LAW

INTRODUCTION

1. Family as an institution.
2. Nature and scope of Family law.
3. Functions of the family.

Family as an Institution; nature and scope of family law.

Defining what a family is rather difficult. Most definitions center on an 'ideal family' definition which is a mother, father and probably two children yet most people do not experience this particular form of family.

The 1999 African Union's **Charter on the Rights and Welfare of the Child** Article 18(1) attempts to give the nature of a family thus; "The family shall be the natural unit and basis of society. It shall enjoy the protection and support of the State for its establishment and development."

The **Universal Declaration of Human Rights** in similar terms states under Article 16(3) that, "The family is the natural and fundamental group unit of society and is entitled to protection by society and the State."

The Preamble of the **United Nations Convention on the Rights of the Child (1989)**, states that "... the family (is) the fundamental group of society and the natural environment for the growth and well-being of all its members and particularly children. ”

In **Hendriks v Netherlands, UN Human Rights Committee, No. 201/1985**, the committee states that, "The idea of the family must necessarily embrace the relations between parents and child. Although divorce legally ends a

marriage, it cannot dissolve the bond uniting father - or mother - and child- this bond does not depend on the continuation of the parents' marriage."

From the above, one idea stands out, that is the institutional nature of a family.

It is possible to distinguish families (a group of people related by blood, marriage or adoption); a nuclear family (parents and their dependent children); extended families (the nuclear family plus the wider kin, e.g. grandparents); kinships (the larger family groups related by blood or marriage); and households (a group of people sharing accommodation).

The next question is how might the law define a family?

In Uganda, all laws relating to domestic relations do not define what a family is.

Under **Objective XIX** of the National Objectives and Directive Principles of State Policy in the **1995 Constitution of Uganda (as amended)**, a family is described as the natural and basic unit of society and is entitled to protection by society and the State. This is a similar description as provided by the international instruments already quoted.

The Constitution further provides under **Article 31** for the rights of a family but still does not define it.

The law as applied by Courts of law oftenly rely on the person in the street's definition of a term where there is no legally recognised definition provided by the law. Here the Court would ask itself, how would a person in the street define a family? The difficulty with this is that although there may be some cases where everyone would agree that a particular group of people is a family, there are many other cases where, when asked, people would answer 'I don't know', or there would be conflicting answers, reflecting different values, religious beliefs or cultural perspectives. So, asking a person in the street does not help to clarify the definition of family in ambiguous cases.

Courts had gone ahead to restrict the definition of family to only occur where parties are in some sort of marriage. In 1950 in **Gammans v Ekins [1950] 2 KB 328 at p. 331**, talking of an unmarried couple, it was stated: 'to say of two people masquerading as these two were as husband and wife, that they were members of the same family, seems to be an abuse of the English Language'. However as expressed in the leading case of **Fitzpatrick v Sterling Housing Association Ltd [2000] 1 FCR 21**, the former approach no longer represents good law.

Fitzpatrick (2000) concerned a Mr Thompson and a Mr Fitzpatrick, who had lived together in a flat for 18 years until Mr Thompson died. Under the Rent Act 1977 Mr Fitzpatrick could succeed to the tenancy of the flat, which had been in Mr Thompson's name alone, if he was a member of Mr Thompson's family. So, the core issue was whether a gay or lesbian couple could be a family. By a three to two majority the House of Lords held that Mr Thompson and Mr Fitzpatrick were a family. The majority accepted that the meaning of family is not restricted to people linked by marriage or blood. Lord Slynn suggested that the hallmarks of family life were 'that there should be a degree of mutual interdependence, of the sharing of lives, of caring and love, or commitment and support'. He later added that the relationship must not be 'a transient superficial relationship'. Applying these criteria to the couple in question, they were certainly family members. Mr Fitzpatrick had cared for Mr Thompson during the last six years of his illness. Lord Clyde, unlike the others in the majority, thought that it would be difficult for a couple to show that they were a family unless there was an active sexual relationship or the potential for one. He felt that the sexual element was important if a distinction was to be drawn between families and acquaintances. The dissenting judges argued that the paradigm of the family was a legal relationship (e.g. marriage or adoption) or by blood (e.g. parent-child). As the couple did not fall into these definitions, nor did they mirror them, they could not be regarded as a family, although the minority added that they believed Parliament should consider reforming the law so that a survivor of a gay or lesbian relationship could take on a tenancy.

Conclusively, from the foregoing it is right to note that though there is no agreed definition of what a family is, there are no workable definitions as expressed above. Key to note is that the law does not restrict the definition of family life to those who are married or those who are related by blood. It is willing to accept that other less formal relations can be family if they can demonstrate a sharing of lives and degree of intimacy and stability.

However, it would be wrong to say that the law takes a pure function- based approach because if a couple are married, they will be regarded as a family, even though their relationship is not a loving, committed, or stable one.

What is family law?

To define family law encompasses similar problems like those encountered in defining what a family is. This is so because there is no accepted definition.

Family law according to Murphy (2005) and B. Stark (2005) (the growing significance of international family law) is seen as the law governing the relationships between children and parents, and between adults in close emotional relationships.

This means that Family law cannot be contained in one definition. This is so because many areas of law have an impact on family life: from taxation to immigration law, insurance laws, social security laws etc.

Functions of the Family

The functions a family provides to both an individual and society cannot be summed up conclusively but we shall attempt to state some of them.

In **Huang v Secretary of State for the Home Department, [2007] UKHL 11** the House of Lords stated this about a family, "Human beings are social animals. They depend on others. Their family, or extended family, is the group on

which many people most heavily depend, socially, emotionally and often financially. There comes a point at which, for some, prolonged and unavoidable separation from this group seriously inhibits their ability to live full and fulfilling lives."

The functions of a family therefore include:

1. Provision of emotional security to its members. Family members usually give emotional support and care for each other. Parents give children companionship, security and love as they grow up and as such children need to grow up in proper families.
2. Families can be regarded as essential to the development of people's identity and to the pursuit of their goals in life. Similarly, families enable children to develop their own characters and personalities.
3. Families also benefit the state. It is generally believed that strong families make up a strong state. Traditions, values and rituals are passed through family.

MARRIAGE 1.

1. What is marriage?
2. Who may marry?
3. Promise to marry and agreement to marry.
4. Domicile.

What is marriage?

Just like the earlier terms proved difficult to define, so is marriage.

It is usually the case that people may say that marriage is whatever the parties to a marriage take it to be. This is the first approach to defining it.

Thus, a Christian couple seeking to base their marriage on biblical principles may well see their marriage in very different terms from a couple who understand their marriage to be based on Hindu or Islamic principles.

The legal definition of marriage

The most widely accepted definition of marriage in the law is that in **Hyde v Hyde and Woodhouse (1866) LR 1 PD 130 at p. 133** ‘the voluntary union for life of one man and one woman to the exclusion of all others’.

It should however be noted that this is merely an ideal promoted by the law rather than a proper definition of marriage.

As we shall note, it is possible to have a legally valid marriage which is polygamous in nature, divorce is also possible making the “for life” notion inapplicable.

It is further argued that polygamous marriages are also covered by the Hyde definition since here a man will contract separate marriages with each woman so for each it is a union between one man and one woman.

Marriage is therefore understood to be a consensual contract between the parties involved.

Who may marry?

Article 31(1) of the Constitution is to the effect that men and women of the age of eighteen years and above have the right to marry.

This means the legal age of marriage in Uganda is eighteen years and above.

In a nutshell, a person domiciled in Uganda has capacity to marry if: one party is male and the other female, neither party is already married (please refer to accepted polygamous marriages in Uganda), both parties are over the age of 18, parties are not related within the prohibited degrees of consanguinity or affinity.

Promise to marry and agreement to marry.

Not every agreement or promise to marry will result in a marriage.

A promise to marry is said to be in place under common law when parties decide to get married and act in a manner that shows their intention to marry.

Traditionally under common law, a promise to marry amounted to a contractual undertaking that was legally enforceable provided the aggrieved party could show that the party at fault intended to enter into the legal relationship but withdrew from it without any legal justification whatsoever.

It is worth noting that there can be no action for breach of a promise to marry unless it is further shown that a contract to marry had been made. However, this type of contract is different from the normal contract in that, it need not be evidenced by writing and the common law provided no particular form of words of promise.

It also had to be shown that a mutual promise had existed, that is, a promise by one person to marry another was not binding unless and until that other also promised to marry the first person. Mutual promises could be imputed from the parties' conduct.

There was no legal requirement that the declaration of an intention to marry by both parties be made at the same time but a reasonable time was required for the communication of this intention. A promise to marry must be fulfilled within the stipulated time, or, where no time has been stipulated, within a reasonable time. A conditional promise to marry may be sued upon when the condition has been fulfilled. If, however, the defendant before then absolutely refuses to honour the contract, an action will lie immediately.

In **Larok v Obwoya (1970) HCB 41**, the lady who was the Respondent and the Appellant were friends when the lady was a pupil at college she became pregnant and as a result was expelled from the college. The man

then wrote to the lady promising to marry her by the end of April. This was in 1968. In October he again wrote to the lady indicating that he was no longer keen to marry her. The lady then went to court and sued for breach of promise to marry and the lower court held that the man had committed a breach of the promise and awarded the lady 2000 as damages. The court based its computation on two grounds that the chances of getting married had been impaired and secondly the injury posed to her feelings. The man appealed but his appeal was dismissed and the sum of 2000 shillings was to be paid.

Similarly, an action will lie where the defendant marries another before the time for the fulfilment of the condition has passed (or where no condition arises, if he or she does so before the time at which he or she has agreed to marry the plaintiff).

Promises to marry made by minors are voidable at the option of the minor. A minor may sue on such a promise but may not be sued, even if he or she has ratified the promise after coming of age. On reaching majority a new and independent promise to marry the other person will be binding. This distinction has been thought to be difficult to apply in actual cases and has been, variously described as “perplexing” and “somewhat subtle”, leading to “some extreme refinements”.

A promise by a married man or woman to marry another person is actionable where the plaintiff had no knowledge of the defendant's married state.

In **Shaw v. Shaw (1954) 2 ALLER 638**, the Plaintiff had cohabited with a man she regarded as a husband for 14 years and they lived together as husband and wife and at one point even celebrated their marriage. Upon his death, the plaintiff discovered that for 10 years of their marriage the man had been married to another woman who died 2 years before him and that it was therefore in those two years that he had capacity to marry the plaintiff. i.e. he was only single for 2 years of their cohabitation and only in those 2 years that he should have been legally been married to her. She

sued in the States for breach of warranty and that warranty was that he was single and had capacity to marry and he had therefore breached his promise to marry her. The court awarded her damages for breach of that warranty.

Where, however, the other person is aware of the defendant's position, a promise by the defendant to marry that person after the death of his or her spouse will be unenforceable on the grounds of public policy. Similarly, a promise by the defendant to marry the other person after he or she has obtained an annulment of a voidable marriage will be unenforceable. On the other hand a promise to marry made by a party to a void marriage would be enforceable. (A marriage that is void may be so treated by any person and does not require a decree of annulment.) A promise to marry conditional upon obtaining a divorce a vinculis outside the jurisdiction would presumably be unenforceable on the ground of public policy, but in England, in 1937, the House of Lords held that this did not apply in a case where the promise was made after a decree nisi had been pronounced. (**Fender v. St. John-Mildmay [1938] A.C. 1.**) The fact that the defendant is already engaged to another person will not relieve him of liability.

Under Islamic law agreements to marry maybe entered into between the parents of the intended spouses. Which means that until the contract to marry and the actual marriage takes place; no contractual obligations arise as between the intended spouses. Therefore no suit for breach of agreement to marry can be instituted. However, where gifts or ornaments have been exchanged between the two families, then these can be returned if the agreement to marry is broken. This was the issue in **Fazaldin Satardin v Din Mahomed and Hajra Begum (1928) 11 K.L.R 41**, where the girl's father entered into a betrothal agreement without her consent and she later refused to marry the prospective suitor. The prospective suitor brought an action where he claimed damages for breach of agreement to marry and in the alternative he also sought an injunction to restrain her from marrying any other man until he had recovered all his damages and the gifts he had given. The court held that he could only recover the

presents and the ornaments he had given but could not recover any damages.

Under Hindu Law, a similar position is adopted where agreements are made between the parents of the parties.

In **Vishram Dhanji v Lalji Ruda [1957] 1 EA 110**, The respondent's son and the appellant's daughter in 1938, being each only a few months old, were betrothed in India according to the rites and customs of the Hindu community. Following the betrothal certain ornaments and clothing were given by the respondent to the appellant for the prospective bride according to Hindu custom. It was common ground that the Indian Contract Act applied to this contract. The proper law to be applied was the law of India and if the contract was valid by its proper law it would be enforced in Kenya, provided that it was not an illegal contract in Kenya.

When she was 12 the appellant's daughter was informed of the betrothal and had then indicated that she did not wish to marry the respondent's son and when she was 15 the respondent was informed, either by her or by her father that the betrothal was broken off. The respondent sued for damages for breach of contract and the Supreme Court awarded special and general damages and ordered the return of certain ornaments to the respondent. At the time the proceedings were instituted the girl had been married to another suitor for twelve months. The appeal was allowed by the Court of Appeal except for the order of the Supreme Court for the return of the ornaments to the respondent. The court further held that an action in Kenya against the father of a prospective bride for breach of a marriage contract made by him on her behalf based on the proposition that the father could compel his daughter to marry as he had agreed might not succeed as being contrary to public policy and contra bonos mores.

Note that this case emphasizes the need for free will in a marriage contract. Various defences exist to an action for breach of promise.

A defendant is not bound by his promise where he establishes a false representation, or fraudulent concealment in material particulars, of the

pecuniary circumstances or previous life of the plaintiff. The bad character of the plaintiff will also excuse the defendant from performance of the contract, unless he or she was aware of the plaintiff's character before making the promise.

Physical or mental incapacity may give rise to a right to terminate the engagement in limited circumstances. No disease or infirmity short of absolute incapacity on the part of the defendant will avail him or her, however, even if it is proved that the performance of marital duties would endanger his or her life. Previous confinement in a mental hospital does not per se render the agreement to marry void but supervening insanity will afford a defence.

The fact that the defendant honestly and reasonably believed the plaintiff to be unfit to marry is no defence if the plaintiff was in fact fit.

Finally, it is a defence to an action for breach of promise that the plaintiff has released or discharged the defendant from performance before any breach of the contract occurs. The release may be express or implied.

Damages awarded in actions for breach of a promise to marry are discretionary in nature. Exemplary damages may be awarded by the judge and depending on the behaviour of the parties, the damages may be aggravated or mitigated.

As already noted above, the gifts given, it is implied, where the contract is broken, should be returned unless they were given unconditionally. But the party at fault is not entitled to benefit from their own wrong.

Domicile

As we shall see, domicile is of great importance when dealing with particular issues in domestic relations. These include divorce causes where the court has to first determine whether the petitioner is domiciled in Uganda before the matter is heard. (refer to **S.1** Divorce Act.)

In simple terms, domicile refers to a place at which a person has been physically present, this place being the permanent residence of the person; the person may be temporarily absent from such a place but has the intention of returning.

Note that there is no agreed definition of domicile but case law has tried to provide explanations for this term.

In **Whicker v Hume, [1858] 7 HL 124**, Justice Cranworth described it by way of illustration, a place "From which you cannot be separated if nothing removes you. When you depart from them, you are seen as a stranger."

Justice Wensleydale in the same case offered: "One very good definition (of domicil) is habitation in a place with the intention of remaining there forever, unless some circumstance should occur to alter his intention."

In **Lord v Colvin, 4 Drew 366 (1859)** Lord Kindersley wrote: "That place is properly the domicil of a person in which he has voluntarily fixed the habitation of himself and his family, not for a mere special or temporary purpose, but with a present intention of making it his permanent home, unless and until something (which is unexpected or the happening of which is uncertain) shall occur to induce him to adopt some other permanent home."

Domicile as pointed in Halsbury's Laws of England (Fourth Edition) Volume 8, Paragraph 421 "is the legal relationship between an individual and a territory with a distinctive legal system which invokes that system as his personal law."

Although the notion which lies behind the concept of domicile is of "permanent residence" or a "permanent home", yet domicile is primarily a legal concept for the purposes of determining what is the "personal law" applicable to an individual and therefore, even if an individual has no permanent residence or permanent home, even then he is invested with a "domicile" albeit by law or implication of law.

There are three main categories or classes of domicile, A) Domicile of Origin, B) Domicile of Choice, and C) Domicile by law.

"Domicile of origin" is the domicile which each person has at birth i.e. the domicile of his father or his mother.

In **Udny v Udny (1869) 1 LR Sc & Div 441**, the House of Lords considered the domicile of the respondent's father at the time of the respondent's birth. The father had been born in Scotland but had left Scotland and taken a lease of a house in London. He had a castle in Scotland but that was not habitable. He visited Scotland frequently but had no residence there. In 1844, he sold the lease and his personal possessions and left London for France to avoid his creditors. But he did not intend to reside permanently in France. His first wife died in 1846, and he formed a liaison with the respondent's mother who, in 1853, gave birth to the respondent in London. He married her and went back to Scotland thinking that he would thereby legitimise the respondent, avoid his creditors and bar the entail on his estates. He intended to stay in Scotland because he thought he would be safe from his creditors. Lord Westbury said, "That no man shall be without a domicile, and to secure this result the law attributes to every individual as soon as he is born the domicile of his father, if the child be legitimate, and the domicile of the mother if illegitimate."

"Domicile of choice" is the domicile which a person of full age is free to acquire in substitution for that which he presently possesses.

In **Undy** (supra), Lord Westbury said "Domicil of choice is a conclusion or inference which the law derives from the fact of a man fixing voluntarily his sole or chief residence in a particular place, with an intention of continuing to reside there for an unlimited time. This is a description of the circumstances which create or constitute a domicil, and not a definition of the term. There must be a residence freely chosen, and not prescribed or dictated by any external necessity, such as the duties of office, the demands of creditors, or the relief from illness; and it must be residence fixed not for a limited period or particular purpose, but general and indefinite in its future contemplation."

In Halsbury's Laws (3rd Edn.) Vol. 7, the following passage appears at p. 15, para. 28 (quoted in **Thornhill v Thornhill (1965) EA 268**),
"domicil of choice is acquired later by the actual removal of an individual to another

country accompanied by his animus manendi". It goes on to state that, "Any person not under disability may at any time change his existing domicil and acquire for himself a domicil of choice by the fact of residing in a country other than that of his domicil of origin with the intention of continuing to reside there indefinitely. For this purpose residence is a mere physical fact, and means no more than personal presence in a locality, regarded apart from any of the circumstances attending it. If this physical fact is accompanied by the required state of mind, neither its character nor its duration is in any way material." (Also look at **Field v Field (1964) EA 43.**)

In other words, the "domicile of origin" is what is attached to person by birth whereas the domicile of choice is what is acquired by residence in a territory subject to a distinctive legal system with the intention to reside there permanently or indefinitely.

The last type of domicile is domicile by the operation of law. This is one that the law vests in a person without taking into consideration a person's residence or intention to change residence. The person will therefore have no choice of refusing to have one since it is one imposed by law.

There are two classes of persons who may acquire a domicile by operation of law. These are:

- (i) Those persons who are under control of another for example a wife*, a minor or a lunatic. The wife takes the domicile of her husband until she voluntarily changes domicile. Similarly a widow takes and retains the domicile of her husband until she marries for the second time or unless she voluntarily changes it. On a second marriage a widow will take the domicile of her second husband. A minor and a lunatic will take the domicile of his/her father, when his/her father is alive. On the death of the father the minor and a lunatic will take the domicile of the mother.
- (ii) Those on whom domicile of another is given. Public servants and prisoners fall under the category of those who are given a domicile of another by law. Public servants who are assigned

with public duty will have to reside in other places for the discharge of their duty these include diplomats, ambassadors, soldiers etc. In such cases, public officers can retain their original domicile which they have in their respective state.

Also read:

1. Droogenbroeck v Coolen & Gobbons (1992) IV KALR 16
2. Gamuthumayor v Gamthumayor (1959) EA 204
3. Gordon v Gordon (1967) EA 85
4. Aslandis v Aslandis (1967) EA 10

MARRIAGE 2:

1. Types of marriage.
2. Preliminaries of marriage in Uganda.
3. Void and voidable marriages
4. Formalities of marriage.

Marriage has traditionally been at the heart of family law. In Uganda it has come under challenge in recent years. First, there is always fierce debate over who can marry. Whereas the Constitution expressly states that marriage should be between persons of the opposite sex, a lot of debate has been going on legitimizing same sex unions but this has not gone with little opposition.

A marriage can be created legally between a male and a female who possess appropriate legal capacity to marry and who comply fully with all formal requirements. It is therefore for this reason that no 'marriage' can either be dissolved by divorce or annulled pursuant to the law of nullity if no valid marriage has been contracted in the first place.

1. Types of Marriages

In Uganda there exists two broad categories of marriages. A marriage can either be monogamous or polygamous in nature.

Monogamous marriages as already defined in **Hyde v Hyde** (supra) by Lord Penzance is one he understood under Christendom as the voluntary union for life of one man and one woman to the exclusion of all others. This covers church and civil marriages. (Read **R v Amkeyo [1917] 7 EALR 14.**)

Polygamous marriages on the other hand are the voluntary unions for life of one man with two or more wives. It is worth to note that here a man can take on as many women as he may wish to marry. This covers mainly customary and Islamic marriages.

2. Preliminaries of marriage in Uganda

As already noted above, for there to be a valid marriage, it must conform to the legal requirements of the country in which the particular marriage is to be celebrated. These will either make the marriage void ab initio or voidable in nature.

The preliminaries of marriage in Uganda can be summarized in the statement that; one party is male and the other female, neither party is already married (with exceptions), both parties are over the age of 18, parties are not related within the prohibited degrees of consanguinity or affinity and some extent the consent of the parents has been obtained.

2.1. Sex: Parties to be male and female.

Article 31 of the constitution provides for men and women as the persons that can engage in marriage. This means that same sex marriages do not have a place in Uganda.

However, in the wake of technological advancement, the common problem now is the issue of sex change. Does a sex change from one sex by an individual render them a member of their new sexual orientation?

In **Corbett v Corbett [1970]2 ALLER 33**, X and Y had participated in a marriage ceremony in 1963. In 1960, Y, born a male, had undergone so called sex-change surgery after which he had lived as a woman and had married X. During subsequent proceedings related to a decree of nullity of marriage, the court considered the problem of Y's sex.

Held: The so called marriage of X and Y was void. Per Ormrod J:

Since marriage is essentially a relationship between man and woman, the validity of the marriage in this case, depends, in my judgment, on whether respondent [Y] is or is not a woman. The question then becomes what is meant by the word 'woman' in the context of a marriage, for I am not concerned to determine the 'legal sex' of the respondent at large. Having regard to the essentially heterosexual character of the relationship which is called marriage, the criteria must, in my judgment, be biological, for even the most extreme degree of transsexualism in a male or the most severe hormonal imbalance which can exist in a person with male chromosomes, male gonads and male genitalia cannot produce a person who is naturally capable of performing the essential role of a woman in marriage. My conclusion is that the respondent [Y] is not a woman for the purposes of marriage, but is a biological male and has been so, since birth.

In **Talbot v Talbot (1967) 111 SJ 213**, the facts are a bit peculiar, a woman dressed herself as a man and went about calling herself John. She managed to get herself a woman with whom she celebrated a marriage. The next day when the woman discovered that she had married a fellow woman she did not seek to nullify the union there and then but continued living with her for close to four years, she later petitioned court to declare the union a nullity which was granted on the reasoning that there existed no marriage from the start.

Also look at **Harrogate Borough Council v. Simpson (1984) 17 H.L.R. 205**.

2.2. Age: Parties to be over 18 at the date of marriage.

Article 31 of the constitution provides for the age of marriage as eighteen years and above. However, there is always the contention of the discrepancy of the **Customary Marriage (Registration) Act Cap 248 s.11**

(a) and (b) with this Article. This Section provides for the minimum age of a female contracting a customary marriage to be sixteen years of age and for the male party eighteen years. This section has not yet been litigated upon by the Constitutional Court but the only logical and legal conclusion would be to interpret it with **Article 274** of the Constitution in mind.

In **Pugh v Pugh [1951] 2 ALLER 680, 687**, Pearce J gives the rationale of this preliminary bar. The learned Judge says; “According to modern thought it is considered socially and morally wrong that persons of an age at which we now believe them to be immature ... should have the stresses and responsibilities of marriage ... Child marriages by common consent are believed to be bad for the participants and bad for the institution of marriage.”

2.3. Neither party is already married to some other person.

Marriages under the Marriage Act are monogamous in nature. **Section 34**

(1) of the Marriage Act though it provides that one should not be married by customary law to any other person before contracting it, the marriage is monogamous in nature and one should not be married in any other type of marriage with anyone other than the person to whom they want to be joined with.

If a person has already contracted one marriage, they cannot contract another until the first spouse dies or the first marriage is annulled or dissolved but this does not apply if the first marriage was void.

A mistaken belief that the first marriage has been terminated, for example, by death of the spouse is immaterial: what is relevant is whether it has in fact been terminated.

However, there are exceptions to this bar as seen in Mohammedan marriages and customary marriages.

The following case draws the exceptions to this preliminary bar clearly.

In **Ayoob v Ayoob [1967] 1 EA 416**, The petitioner and the respondent, both Mohammedans, were married under the Marriage Act of Kenya, and subsequently also went through a marriage according to Mohammedan

law. The petitioner-husband later divorced the respondent by “talak”, which would have been a valid divorce according to Mohammedan law as regards a marriage recognised by Mohammedan law. The petitioner then brought this suit for a declaration that this “talak” divorce was also recognised by the law of Kenya as dissolving the marriage under the Marriage Act. Rudd J in his holding had this to say of a marriage under the Marriage Act and that under Mohammedan law; “Under the Mohammedan law a man is entitled to have as many as four wives at the same time. A Mohammedan marriage is, therefore, not a monogamous marriage... The effect of a marriage under the Marriage Act is quite different in its incidents from that of a

marriage under Mohammedan law. I think it might be recognised as a Mohammedan marriage for some purposes, albeit many such marriages, including the one in question in this case, might be irregular marriages under the Muslim law. An irregular marriage is void under Shiite law but not necessarily void under Sunni law. It is unnecessary, fortunately, to consider that aspect in detail in this case, but the point is that a marriage which is merely a marriage recognised under Mohammedan law has quite different incidents from a marriage under the Marriage Act. I will call the former form of marriage a Mohammedan marriage and the latter form a marriage under the Act and I have no doubt but that a marriage under the Act is not a Mohammedan marriage in the ordinary sense. A marriage under the Act is a monogamous marriage, a Mohammedan marriage is not a monogamous marriage. This distinction is implicit virtually throughout the Act.” Emphasis mine.

2.4. Parties must not be within the prohibited degrees of kindred and consanguinity.

In Uganda, marriages that are regarded as incestuous are prohibited. The prohibited marriages may arise from consanguinity (ie, blood relationship) or from affinity (ie, relationship by marriage).

The rules prohibiting marriage between relations were based originally on biblical grounds. Latterly, the prohibitions have been justified by reference to the genetic health of any offspring of such unions. However, genetic problems can arise between unrelated persons and between cousins, who may marry, and the prohibitions extend to adoptive and step- relations. So

the rules are better rationalized on social grounds: the undesirability of relatives forming conjugal relationships disrupting other family relationships.

The prohibitions of affinity were also largely based on theological reasons that a husband and wife were one flesh, so that marriage with one's sister-in-law was as incestuous as marriage with one's own sister. This view is no longer supportable considering the multitude of religions in Uganda and the absence of a state religion.

Note that prohibited degrees may vary from jurisdiction as was the case in **Cheni v Cheni [1962] 3 All ER 873**, X and Y, who were uncle and niece, were married in Egypt in a ceremony based on Jewish rites. The marriage was valid under Egyptian and Jewish law and although it was, at the time of its celebration, potentially polygamous, it was rendered monogamous when a child of the marriage, Z, was born in 1926 (two years after the marriage). X and Y became domiciled in the UK in 1957. In 1961, Y, the wife, presented a petition praying that her marriage to X be declared void on the ground of consanguinity. The marriage was however held to be valid. In his word, Simon P the judge said; "[The true test is] whether the marriage is so offensive to the conscience of the English court that it should refuse to recognise and give effect to the proper foreign law ... It would be altogether too queasy a judicial conscience which would recoil from a marriage acceptable to many peoples of deep religious convictions, lofty ethical standards and high civilisation. I must bear in mind that I am asked to declare unmarried the parents of [Z] who is unquestionably legitimate in the eyes of the law (Re Bischoffsheim (1948)). In my judgment, injustice would be perpetrated and conscience would be affronted if the English court were not to recognise and give effect to the law of the domicile in this case."

An interesting case in Uganda on this is **Bruno L Kiwuwa v Ivan Serunkuma and Juliet Namazzi Civil suit 56 of 2006**, where the High Court of Uganda barred the respondents from getting married on the basis that it would violate the local marriage customs of their tribe. It must be pointed out from the outset that different parts of this decision were declared as bad law by the Supreme Court of Uganda (refer to **Mifumi (u)**)

Ltd and others v Attorney General and Kenneth Kakuru Constitutional Appeal no. 2 of 2014 per Tumwesigye JSC) and also that the Court made this decision despite the fact that the respondents had not sought to celebrate their union under customary law.

The Plaintiff, Kiwuwa, the biological father of the female respondent, Namazzi, sought a permanent injunction against a marriage by the respondents under the Marriage Act on the grounds that the respondents both belonged to the Ndiga(sheep) clan by virtue of the fact that their parents were both members of that clan and that same clan marriages were prohibited by Kiganda customs to which the clan belonged. The Plaintiff claimed that such a union was against custom, ‘abominable’ and ‘illegal’ and further that on the basis of Article 37 of the Constitution, the court was enjoined to enforce the custom in issue.

The defendants argued that even if the marriage was found to be repugnant on a cultural basis, it was not illegal under the Marriage Act as it was not within the written prohibited degrees of consanguinity and neither did it fall under the prohibitions under the Penal Code Act on incestuous sexual relations. They further argued that as they did not seek to celebrate their marriage under the Customary Marriages Act, their union could not be regulated by the custom which the plaintiff sought to impose on them.

However, in finding for the plaintiff, the court took an approach of the right to culture as an absolute imposition with no room for the existence of the individual other than as a ‘specific cultural being’. The court’s decision turned on whether or not, even if the defendants were to procure a marriage under the Marriage Act, there existed a lawful impediment or just cause to the marriage under that Act, as provided in sections 10, 12, 13 or 21 and whether the plaintiff’s claim comprised such an impediment.

This was a misinterpretation of the law by the learned Justice Remmy Kasule, this being fortified by the words of Tumwesigye JSC in **Mifumi** (supra). However, the law on marriage in relations was spot on.

2.5. Consent in marriage.

In some instances as will be noted, the consent of a parent or any person in the position of loco parentis to an intending party will be required before a marriage is celebrated.

Article 31 of the Constitution on the other hand provides for the free consent of parties intending to marry. However **Section 17** of the Marriage Act requires written consent if either party to the marriage is below the age of twenty-one. A similar provision is also present in **Section 32** of the Customary Marriages (registration) Act when contracting a customary marriage.

A case on this is **Parojcic (otherwise Ivetic) v Parojcic [1959] 1 ALLER 1**, The petitioner's father, after fighting with anti-communist forces in Yugoslavia, left the country in 1944; he reached England in 1947. The petitioner and her mother, after suffering many hardships, left Yugoslavia and arrived in England on 11 November 1956. In London they were met by the petitioner's father and the respondent, a Yugoslav refugee, whom the father introduced to the petitioner as the man whom she was to marry. The respondent was fourteen years older than the petitioner. The petitioner refused the proposal. During the period between 11 November and 29 December 1956, there were quarrels between the father and the petitioner concerning the proposed marriage. The father threatened to send the petitioner back to Yugoslavia if she did not marry the respondent; she told her father that she would rather commit suicide than return there. On 28 December there was an argument between them about the marriage and the father struck her. On 29 December 1956, the petitioner and the respondent, in the presence of her father and two other Yugoslavs, went through a ceremony of marriage at a register office. The petitioner, so the court found, understood the nature of the ceremony. After the ceremony the petitioner said that she did not agree, locked herself in her room, and did not thereafter see the respondent again. Both parties to the marriage ceremony were found to have acquired domicile of choice in England. On petition for nullity on the grounds of mistake and duress. It was **HELD** that though the petitioner had understood the nature of the ceremony, she

had established that she never consented to the marriage, but was driven to go through the ceremony by terror instilled in her by her father's threats; therefore, a decree of nullity would be granted.

3. Void and voidable marriages.

These situations arise where the essential or procedural requirements of a particular marriage were not complied with.

A consolidation of the law on void and voidable marriages is found in the Marriage Act. Circumstances invalidating a marriage are therefore found under **Section 34** of the Marriage Act. This is in relation to church and civil marriages. Other marriages like the Hindu marriages, cultural marriages and Islamic marriages are governed by their respective laws.

Section 12 of the Divorce Act also contains grounds that make a marriage void.

Marriages fall into three categories:

- those that are valid and can only be brought to an end through divorce or legally authorised separation;
- those that are void and have, therefore, never existed as a valid marriage; indeed in law, no marriage has been created; and
- those that are voidable and which will be seen in law to be valid, although due to an irregularity, the marriage may be set aside and declared to be no longer in existence.

The terminology stems from the fact that marriage is seen as a contract and so terms are used that reflect contractual situations.

The distinction between void and voidable marriages is well brought out in the case of **De Reneville v De Reneville [1948] 1 ALLER 56, 60 CA**. In this case Husband and wife were married in France; the husband was domiciled there, the wife in England. The wife petitioned on the ground of nonconsummation of the marriage. It was held that the question of the

marriage was to be determined according to French law, ie, the law of the country in which the parties intended to make the matrimonial home. Lord Greene considered the essential distinction between void and voidable marriage:

“The substance [of the distinction] may be expressed thus. A void marriage is one that will be regarded by every court in any case in which the existence of the marriage is in issue as never having taken place and can be so treated by both parties to it without the necessity of any decree annulling it. A voidable marriage is one that will be regarded by every court as a valid subsisting marriage until a decree annulling it has been pronounced by a court of competent jurisdiction.”

From the above, we note that for a marriage to be void there should have been a ceremony where the parties purported to be getting married. This is important because a void marriage is treated by law as being a nonexistent and this is both de facto and de jure.

Some authors have tried to create a further distinction here. There is what they call a “non-marriage” though technically it is a void marriage.

According to Jonathan Herring, a non-marriage needs to be distinguished from a void marriage. According to the author, a non-marriage is where the ceremony that the parties undertook was nothing like a marriage and so is of no legal consequence. This distinction according to **Re Spence** (infra) is nothing more than a void marriage.

The reason the author gives as to why this distinction is of so great an importance is because if it is a void marriage then the court has the power to make financial orders, redistributing property between the couple. If the ceremony is a non-marriage the court has no power to redistribute property and the couple will be treated as an unmarried couple. He quotes **Hudson v Leigh (Status of Non-Marriage) [2009] 3 FCR 401**, in support of this assertion.

In that case, it was clear the event was a “non-marriage.” Neither the parties nor the celebrant intended the ceremony to be a marriage and the normal wording of a marriage service was altered so it did not appear to be

a marriage. Bodey J listed the following factors as indicating whether a marriage was a void marriage or a non-marriage;

- whether the ceremony or event set out or purported to be a lawful marriage;
- whether it bore all or enough of the hallmarks of marriage;
- whether the three key participants (most especially the officiating official) believed, intended and understood the ceremony as giving rise to the status of lawful marriage; and
- the reasonable perceptions, understandings and beliefs of those in attendance.

This case can be contrasted with **Gereis v Yagoub [1997] 1 FLR 854**. Be it as it may. The distinction but a mere duplication of the term void and such a distinction should only be created by a presiding judicial officer when he or she is faced with a problem in deciding whether to distribute property between the couple or not. However, this distinction is a welcome reform in modern times where a sham ceremony could pass for a marriage and parties may want to benefit from the same.

In **Re Spence [1990] 2 FLR 278**, W married H in 1885 and gave birth to D in 1891. Later W left H to live with X and gave birth to two sons by him. In 1934 W went through a ceremony of marriage with X. H was alive at that time. In subsequent proceedings related to the grant of letters of administration to D, the question of D's legitimacy arose. It was held that the marriage of W to X was void (and, under s 1(1) Legitimacy Act 1976, persons born before their parents entered into a void marriage were

not to be treated as legitimate). Nourse LJ said: "A void marriage, both as a matter of language and by definition, is a nullity ... It is only an idle ceremony, achieving no change in the status of the participants. It achieves nothing of substance."

Voidable marriages subsist from inception until one party succeeds in obtaining an order for nullification. This means that the impediments to the validity of the marriage are to help an aggrieved party or interested

person to proceed to courts of law and use them as ground for getting an order of nullification.

Technically, a void marriage is void even if it has never been declared to be so by a court, whereas a voidable marriage is valid from the date of the marriage until the court makes an order. That said, a party who believes his or her marriage to be void would normally seek a court order to confirm this to be so. This avoids any doubts over the validity of the marriage and also permits the parties to apply for court orders relating to their financial affairs. (Read **Whiston v Whiston [1995] 2 FLR 268**)

Any person may seek a declaration that a marriage is void, but only parties to the marriage can apply to annul a voidable marriage. As we shall note this point shows the distinction between the grounds on which marriage can be declared void or voidable.

3.1. Distinction between Nullity and Divorce.

A decree of nullity acts retrospectively and therefore the marriage will be regarded as having been invalid from its inception.

The annulment of a voidable marriage on the other hand, like divorce, changes the parties' status by judicial decree. However here divorce will not act retrospectively, the parties are still regarded as having been husband and wife up to the time when the decree is made absolute.

3.2. Circumstances that make a marriage under the Marriage Act void or invalid.

As already pointed out, only the Marriage Act contains grounds that may be used to imply invalid marriages. These grounds are laid out under **S.34** of the Act. A marriage shall be null and void if both parties knowingly and wilfully acquiesce in its celebration;

- (a) in any place other than the office of a registrar of marriages or a licensed place of worship, except where authorised by the

- Minister's licence;- read **Mohadervan v Mohadervan [1962] 3 ALLER 1108.**
- (b) Under a false name or names;- read **Militante v Ogunwomoju [1993] 2 FCR 355, Chipchase v Chipchase [1941] 2 ALLER 560.**
 - (c) without the registrar's certificate of notice or Minister's licence duly issued;
or
 - (d) by a person not being a recognised minister of some religious denomination or body, or a registrar of marriages.- read **A v B (1932) 14 KLR 109**

In addition to the above, as already mentioned, **Section 12** of the Divorce Act also has grounds where a decree of nullity of a marriage may be passed;

- (a) the respondent was permanently impotent at the time of the marriage;
- (b) the parties are within the prohibited degrees of consanguinity, whether natural or legal, or affinity;
- (c) that either party was a lunatic or idiot at the time of the marriage;- read **Bennett v Bennett [1969] 1 All ER 539**, also **Sheffield City Council v E and another [2004] EWHC 2808**- “. . . The law . . . can be summed up in four propositions. (i) It is not enough that someone appreciates that he or she is taking part in a marriage ceremony or understands its words. (ii) He or she must understand the nature of the marriage contract. (iii) This means that he or she must be mentally capable of understanding the duties and responsibilities that normally attach to marriage. (iv) That said, the contract of marriage is in essence a simple one, which does not require a high degree of intelligence to comprehend. The contract of marriage can readily be understood by anyone of normal intelligence. There are thus, in essence, two aspects to the inquiry. The first is whether the person understands the nature of the marriage contract. But this, as the authorities show, merely takes us to the central question: does he or she understand the duties and responsibilities that normally attach to marriage? This in turn leads on to two further questions. (1) What are the duties and responsibilities

that normally attach to marriage? In other words, what are the essential attributes of the contract of marriage that the person has to be mentally capable of “understanding”? . . . (2) What is meant for this purpose by “understanding”?” per Munby J.

- (d) that the former husband or wife of either party was living at the time of the marriage, and the marriage with the previous husband or wife was then in force;
- (e) that the consent of either party to the marriage was obtained by force or fraud.- read **Hirani v Hirani [1983] 4 FLR 232**- “The crucial question in these cases, particularly where a marriage is involved, is whether the threats, pressure or whatever it is, is such as to destroy the reality of consent and overbears the will of the individual. It seems to me that this case of a young girl, wholly dependent on her parents, being forced into a marriage with a man she has never seen in order to prevent her (reasonably from her parents’ point of view) continuing in an association with a Muslim which they would regard with abhorrence. But it is as clear a case as one could want of the overbearance of the will of the petitioner and thus invalidating or vitiating her consent.” Per Ormrod LJ.

Section 13 of the Customary Marriage Registration Act provides that if a party has already contracted a customary marriage, and subsequently contracts a marriage under the Marriage Act with another person, that subsequent marriage will be void. (Also look at **S.36** of the Marriage Act)

3.3. Circumstances that make a marriage voidable. A

marriage is voidable where;

- (a) it has not been consummated because of incapacity of either party or wilful refusal of respondent to consummate;

A marriage may be annulled where not consummated owing either to the wilful refusal of the respondent or to incapacity of either party.

There is no limitation on a suit based on either ground and can be raised at any time until consummation occurs.

Here it is important to examine three issues: first, the meaning of 'consummation'; and then the two ways in which lack of consummation may give grounds for nullity: incapacity and wilful refusal to consummate.

What is consummation?

Consummation or sexual intercourse can well be explained in the words of Dr. Lushington in **D- E v A- G, falsely calling herself D- E (1845) 1 Rob Eccl 279, 298,**

"Sexual intercourse, in the proper meaning of the term, is ordinary and complete intercourse; it does not mean partial and imperfect intercourse: yet I cannot go the length of saying that every degree of imperfection would deprive it of its essential character. There must be degrees difficult to deal with; but if so imperfect as scarcely to be natural, I should not hesitate to say that, legally speaking, it is no intercourse at all. I can never think that the true interest of society would be advanced by retaining within the marriage bonds parties driven to such disgusting practices. Certainly it would not tend to the prevention of adulterous intercourse, one of the greatest evils to be avoided . . . If there be a reasonable probability that the lady can be made capable of vera copula—of the natural sort of coitus, though without power of conception—I cannot pronounce this marriage void. If, on the contrary, she is not and cannot be made capable of more than an incipient, imperfect, and unnatural coitus, I would pronounce the marriage void..."

Also read: **K v K [1960] EA 717.**

What is incapacity?

The incapacity to consummate may be physical. If it is curable by non- dangerous surgery, a refusal to undergo treatment might amount to wilful refusal.

Incapacity may also be psychological as was the case in **Clarke (otherwise Talbott) v Clarke [1943] 2 All ER 540**, the parties were married in 1926 and co-habited until 1940. In 1930, the wife gave birth to a son, of whom, it was admitted, the husband was the father. In 1942, the wife petitioned for a decree of judicial separation on the ground of the husband's adultery. The husband, in his answer, alleged that, for physical reasons, the marriage

had never been consummated and petitioned for a decree of nullity. The wife had an invincible repugnance to sexual intercourse, described in the language of 1940s psychology as 'frigidity'. It was held on the facts and on the medical evidence the birth of the child was due to fecundation ab extra and the marriage had never been consummated owing to the wife's incapacity and a decree of nullity would, therefore, be granted to the husband.

There is always a tendency to confuse wilful refusal with incapacity and care must be taken to differentiate the two since while a spouse may plead his or her own incapacity, wilful refusal may only be relied on by the other party.

What is wilful refusal?

Not any refusal to have intercourse suffices. Since consummation need occur only once, refusal to repeat the exercise will not render the marriage voidable, though it might give grounds for divorce.

'Wilful refusal' was described in **Horton v Horton [1947] 2 ALLER 871** by Lord Jowitt. He said, "I do not think it desirable to attempt any definition of the phrase. 'Wilful refusal to consummate the marriage'. The words connote, I think, a settled and definite decision reached without just excuse, and in determining whether there has been such a refusal, the judge should have regard to the whole history of the marriage." In this case, consummation had been delayed by the war, and an unsuccessful attempt subsequently made. The court acknowledged that in such 'false start' cases, one or both parties would frequently be reluctant and hesitant to try again, and in light of the wife's evident anxiety to resolve the problem, she could not be said to be wilfully refusing.

Also read: **Potter v Potter (1975) 5 Fam Law 161**, **Ford v Ford (1987) 17 Fam Law 232** and **Kaur v Singh [1972] 1 WLR 105**

(b) Mistake, Misrepresentation and Fraud.

A mistake as to the identity of the contracting party will make a marriage voidable if this results in one party failing to marry the individual they intend to marry.

For a mistake to be able to make a marriage voidable, it must relate to identity or the nature of the ceremony.

Mistakes may be spontaneous or induced by the fraud of the other party or a third party. Other mistakes will not make a marriage voidable though the courts have with time enforced a jurisdictional protection to prevent marriages involving vulnerable individuals going ahead under such misapprehensions as was stated by the court in **Re SA (Vulnerable Adult with Capacity: Marriage) [2005] EWHC 2942** in a marriage arranged for a deaf and dumb young Pakistani woman.

Fraudulent Concealment of faith

Tatiana Adebisi v Adebisi Adeniji [1900— 1991] KALR 36- in this case, the petitioner petitioned for nullity of marriage under the Divorce Act on the grounds that the respondent had fraudulently led her into marriage with him by stating that he was a Methodist and yet he belonged to a chaotic, fanatical Christian sect who pray at night, screaming, shouting and jumping. In her decision Justice Mukasa Kikonyogo held that the fraudulent concealment of the true faith of the respondent was a ground by which the consequent marriage would be declared null and void since if the petitioner had known the true profession of the respondent she would not have married him.

Mistake as to identity.

C v C [1942] NZLR 356, 358–9 (Supreme Court, New Zealand) in this case, Callan J while quoting **Moss v Moss (1897) P631** stated that, “But when in English law fraud is spoken of as a ground for avoiding a marriage, this does not include such fraud as induces a consent, but is limited to such fraud as procures the appearance without the reality of consent” . . . “Error about the family or fortune of the

individual, though produced by disingenuous representations, does not at all affect the validity of the marriage.”

Note that this decision is also in tandem with the decision in **Wegfield v Mackay (1807) 1 Hag. Con. 394** where it was stated that, the law makes no provision for blind credulity however it might have been produced.

‘That the law presumes that the husband uses due caution in a matter in which his happiness and life are so materially involved.

However, the line between mistakes as to identity and attributes may not be certain. In **Militante v Ogunwomoju [1993] 2 FCR 355**, the court voided a marriage involving an illegal immigrant who had assumed the identity of someone living legally in the UK. The court further stated that where a person makes a false representation as to his identity, and another person marries him believing his misrepresentation, fraud of this nature will destroy consent. One commentator on this case notes that is not known whether the petitioner ‘thought she was marrying another man, or simply [as in C v C] that she thought the man had a different name.

Mistake as to the nature of the ceremony

Here, language barrier often creates the confusion. An example is the case of **Valier v Valier (otherwise Davis) (1925) 133 LT 830**, where the Conte Jerome Valier, an Italian resident of France who had fallen

on hard times, was working in a garage and was ‘not quick on the uptake’ when spoken to in English. He went through a marriage ceremony with May Winifred Davis, aspiring actress, at St Giles’, London register office. Not realizing that he had thus been married, he later married the Marchesa Balbi in Italy. His London marriage was annulled on the ground that

he had no idea when he attended the register office and signed a document, which he never subsequently saw or read, that he was contracting a marriage. In Italy, engaged couples must sign a document at the town hall and wait three weeks before obtaining a licence to marry, the marriage then being solemnized at the town hall and thereafter in church. He mistakenly

thought that he was merely performing this preliminary. The marriage was annulled.

c) Fear and Duress

As we shall see, consent is key. Duress negates consent. The law on duress has received considerable attention mostly in UK courts due to the emergence of forced marriages. Whereas such marriages are prevalent in Uganda, no case has been successfully concluded on the matter in our jurisdiction.

A distinction should however be drawn between an arranged marriage and a forced marriage. Singer J explains the difference well in **Re SK (Proposed Plaintiff) (An Adult by way of her Litigation Friend) [2004] EWHC 3203**, he says; “. . . [T]here is a spectrum of forced marriage from physical force or fear of injury or death in their most literal form, through to the undue imposition of emotional pressure which is at the other end of the forced marriage range, and that a grey area then separates unacceptable forced marriage from marriages arranged traditionally which are in no way to be condemned, but rather supported as a conventional concept in many societies. Social expectations can of themselves impose emotional pressure and the grey area . . . is where one may slip into the other: arranged may become forced but forced is always different from arranged.”

Forced marriages are therefore voidable whereas arranged marriages to which both parties consent are not.

For fear to be able to vitiate a marriage and thus negative consent, the English Courts have set up a three-stage test. Scarman J laid out this test in

Buckland v Buckland (or se Camilleri) [1968] P 296, 301 (Probate Div) thus; “[I]n a case where it is alleged that the petitioner’s consent to marriage has been vitiated by fear, it must be shown, first, that fear of sufficient degree to vitiate consent was present; and, secondly, that the fear was reasonably entertained. . . . [A] third proposition may be stated to the effect that, even if the fear is reasonably entertained, it

will not vitiate consent, unless it arises from some external circumstance for which the petitioner is not himself responsible.” The facts of this case were rather peculiar, the husband, a member of the armed forces serving in Malta, found himself in an awkward position. Falsely alleged to be the father of a young girl’s child, he was told by his senior officers and lawyer that his only escape from prosecution and imprisonment for under- age sex would be to marry the girl. The judge ruled in the petitioner’s favour on the facts on a ratio that he agreed to marry the girl because he was afraid because of the charge that had been preferred against him strengthened by the advice given to him by his own lawyer and seniors. He was in a dilemma, it was either marriage or prison.

This test was further elaborated in **Szechter v Szechter (or se Karsov) [1971] P 286, 297–8 (Probate Div)**.

In **Singh v Kaur (1981) 11 Fam Law 152**, a young man aged 21, not under any immediate threat to life, limb or liberty but because having always lived at home, he was threatened that if he did not marry, he would lose his job in the family business and have no income or transport. The court held that this did not fall under duress that could vitiate a marriage. Ormrod LJ stated that; “[O]ne can see that, through our English eyes, he is in a sad position but, at the same time, he has to make up his mind, as an adult, whether to go through with the marriage or whether to withstand the pressure put upon him by his family. It is quite clear that this court cannot possibly . . . hold that this marriage is invalid by reason of duress unless it can be shown that there were threats to his life, limb and liberty. Quite clearly, the evidence falls far, far short of that. There was no threat of that kind...”

Also read: **Parajock v Parajock [1950] 1 ALLER**.

d) Consent

This also makes a marriage voidable and not void. The reason for this is that the parties themselves may wish to rectify it when true consent can be

given and consequently third parties should not be able to impeach such a marriage.

Lack of consent may be relied on by either party, not only the party whose consent it is claimed was lacking. A petitioner may rely on this ground even if they are the ones that orchestrated the lack of consent.

Note that to discuss what factors negative consent here would be a repetition of what has already been discussed above.

3.4. Bars to grant of relief of nullity; Approbation of voidable marriages and collusion.

A void marriage cannot be approbated but a voidable marriage can be.

If a marriage that is otherwise voidable due to failure to satisfy one of the formal requirements, it may be subsequently tolerable and if the party who did not know of the defect discovers it but does not set the marriage aside, then he or she has waived his or her right to do so.

This is known as approbation of marriage i.e. continuing to observe it and the defect is deemed cured.

Approbation by overt acts;

If a party, knowing that he may obtain a decree of nullity, acts in a way which is consistent only with his or her treating the marriage as valid, he may not subsequently treat it as voidable.

In **K v K [1960] EA 717**, the case dealt with two issues, approbation by overt acts and wilful refusal to consummate a marriage. The husband in this case claimed that he could not be satisfied with consummation because of lack of proper penetration. Court observed that since the man had stayed with the woman and had paid mortgage debts for her, he had approbated by an overt act.

Approbation by delay

Mere delay in presenting the petition will not necessarily bar the remedy. However, if the petitioner continues to live with the respondent as his or her spouse for a considerable length of time, this may be sufficient to amount to approbation.

In **Scott v Scott [1959] 1 ALLER 531**, the husband could not obtain a decree after he had been content with a marriage without sexual intercourse for some five years and the reason why he now sought to dissolve it being that he wanted to marry another woman.

In **K (otherwise P) v K [1944] 21 KRL 23**, the parties were married in England in 1930. They went to Kenya and lived there for 14 years. The wife brought nullity proceedings on the ground that the marriage had not been consummated due to impotence of the husband. That the wife learnt of the impotence and the inability to consummate the marriage after three years. She however did not bring the suit until after 11 years from the time of discovery. That she kept hoping he would be able to make it and that's why she waited for 11 years. The court held that the wife's conduct in this case did not amount to approbation and so a decree of nullity was granted.

Acceptance of material benefits

If the petitioner, knowing that he or she can obtain a decree of nullity continues to accept material benefits to which he would be entitled to only on the assumption that the marriage is valid, he may then be estopped from asserting that it is voidable e.g. in case a petitioning wife had continued to accept income from a trust in the wife's favour in a marriage settlement.

3.5. The legal effect of marriage

Historically, marriage had a profound and unequal effect on the legal status of the individuals who became husband and wife.

A classic exposition of these legal effects and a beginning point of discussion should start with W. Blackstone's commentary (**W. Blackstone, Commentaries on the Laws of England, vol 1 (1765, Facsimile edn: Chicago: University of Chicago Press, 1979), 430**) where he says;

"By marriage, the husband and wife are one person in law: that is, the very being or legal existence of the woman is suspended during the marriage, or at least is incorporated and consolidated into that of her husband: under whose wing, protection, and cover, she performs everything . . . Under this principle, of an union of person in husband and wife, depend almost all the legal rights, duties, and disabilities, that either of them acquire by the marriage."

This classical example represents the old patriarchal notion where men were in control however in the nineteenth century, this watered away. (For this read **Sheffield City Council v E and another [2004] EWHC 2808, [2005] Fam 326**)

The following effects cut across most types of marriages discussed herein

Acquisition of status of being married.

One that gets married under the Marriage Act becomes incapable of contracting another marriage during the subsistence of this marriage. Marriage whilst still under this status constitutes the matrimonial offence of bigamy. (Refer to **S.41** of the Marriage Act and **R.S v SS [1969] EA 111.**)

If such a person has sexual intercourse outside marriage he or she commits the matrimonial offence of adultery under Ss 12(d) of the Divorce Act and 10(1) (d) of the Marriage Act.

Also look at **John Tom Kintu Muwanga v Myllious Gafabusa Kintu** (infra)

Right of the wife to use the husband's name.

Fedlal v Goldsmith (1877) 2 PD 263- marriage confers upon a wife the right to use the husband's name but she is under no duty to do so.

However, if she so wishes, she may adopt it without swearing a deed poll.

Even after the termination of the marriage, the woman may retain the husband's name and the husband has no right to restrain her from using it unless she is using it for a fraudulent purpose.

Acquisition of the husband's domicile

Refer to our discussion supra.

Presumption of legitimacy

There's a rebuttable presumption that all children born during the subsistence of a marriage belong to the parties to that marriage.

Read:

1. Preston Jones v Preston Jones (1956) 1 ALLER 124
2. Knowles v Knowles (1961) P.305
3. Re-Overbury (1955) CH. 122.
4. Enttenfield v Ettenfield (1940) 1 ALLER 293

Conjugal rights/Consortium

This is the living together as husband and wife with all the incidents that flow from such a relationship. The right embraces the right to companionship, love, comfort, affection, sexual intercourse etc.

Read:

1. Divorce Act Section 20
2. Amos Senyankazana v AG (1984) H.C.B 48.
3. Place v Searle (1932) 2 KB 497
4. Morgan v Morgan (1959) 1 ALLER 539
5. Brodie v Brodie (1917) P.271
6. AV v CD (1955) 28 KLR 210
7. Any other relevant cases on the topic

4. Formalities of marriage.

There are complex rules governing the legal formalities required for a marriage. The exact requirements depend on whether the marriage was performed within the rites of the Church, Islam, Hindu and customs specific to a particular region in Uganda.

The purposes of having formalities can be said to be as follows:

1. The formality requirements help to draw a clear line between a marriage, an engagement, and an agreement to cohabit.
2. The formality requirements ensure that the parties do not enter into marriage in an ill-considered or frivolous way. To fulfill the requirements takes some time and effort. Further, they ensure that the moment of marriage is a solemn event. This reinforces the seriousness of marriage to the parties and those present.
3. The existence of the formalities helps to ensure that there is a formal record of marriages. (Look at the decision in **Islam v Islam [2003] FL 815**)
4. The formalities also ensure that anyone who wishes to object to the marriage can do so.

4.1. Marriage under the Marriage Act

The Marriage Act empowers the Minister to appoint marriage registrars under S.3 of the Act. The minister is also given the power to license places of worship as areas where marriages can be celebrated under S.5 of the Act.

Marriages under the Marriage Act are either Church marriages or civil unions.

Preliminaries to the marriage:

Civil preliminaries:

They are designed to ensure that notice of the intended marriage is given.

a) Residence,

Notice must be given to the Registrar of the district where one of the parties has resided for at least fifteen days.

According to **S.6** of the Act, one of the parties to the intended marriage is required to give notice to the registrar of the district in which the marriage is intended to take place in **Form A** (first schedule to the Act).

b) Publicity,

This can be found under **S.9 (1)** of the Act. Upon receipt of marriage Notice, the Registrar shall cause it to be entered in a book to be called the Marriage Notice Book.

The Registrar shall also publish the Notice by causing a copy of it to be affixed on the outer door of his or her office until three months have elapsed or until he grants a certificate.

This notice is open for public inspection.

A 21 days period must be set aside after notice is lodged before the parties can get married.

Under **S.13** of the Act, if a person has an objection to the marriage, he or she may enter a caveat against the issue of the Registrar's certificate by writing at any time before the issue, the word "Forbidden" opposite the entry of the Notice in the Marriage Notice Book.

The caveat should indicate particulars of the person objecting to the marriage and the grounds.

The Registrar shall not issue his or her certificate until removal of the caveat and under **S.14** of the Act, the Registrar is required to refer the matter to the High Court for resolution. (Read **Re a Notice of Marriage Given by Sansone Banin [1960] 1 EA 532**)

If no objection is lodged within the 21 days, the registrar shall then issue a certificate permitting the parties to marry.

According to **S.10**, the marriage shall then take place after 21 days but before expiration of 3 months.

c) Discovery of impediments.

There should not be any impediments to this marriage such as kindred or affinity or any lawful hindrance to the marriage.

Church Preliminaries;

According to **S.20** of the Act, marriages may be celebrated in any licensed place of worship by any recognised minister of the church, denomination or body to which the place of worship belongs, and according to the rites or usages of marriages observed in that church, denomination or body.

a) Residence

If the parties reside in the same parish, the banns must be published there and if in different parishes then in each of the different church which is the usual place of worship of one or both parties.

No specific requirement is imposed on the length of prior residence in the parish.

b) Publicity

The banns are entered in an official register and then published in a loud manner and in accordance with the form of words prescribed for the particular denomination.

Publication here means announcing of the banns aloud. It is usual practice for the parties to be present on at least one of the occasions when the banns are published.

The real names of the parties (those known by everyone in the parish), intending to get married should be used when publishing banns.

In **Dancer v Dancer [1948] 2 All ER 731**, Jessamine was the legitimate daughter of Mr and Mrs Knight. When Jessamine was aged three, Mrs Knight began to live with Mr Roberts, by whom she had children. All the children, including Jessamine, were known as Roberts. She did not discover that she was not Roberts' daughter until his death, when she was 17. She continued to be known as Roberts and was named in the banns as Jessamine Roberts. Later her husband petitioned for a decree of nullity, arguing undue publication of banns. It was held by Ormrod J that there was no undue publication of banns. He said; "She [Jessamine] had adopted the advice of the vicar, which was: 'If you give the name of Knight, no one will know anything about you. But if you give the name of Roberts, by which name you have always been known in this parish and everywhere else, then everyone will know who it is that is being married.' On that advice and with the intention of avoiding any form of concealment, she allowed her name to go forward in the banns as Roberts. I am satisfied that, in those circumstances, this is a case in which there was no undue publication of banns."

In **Small v Small (1923) 67 SJ 277**, X was a deserter from the Royal Field Artillery. In order to avoid detection and prosecution he had assumed a false name which he used in relation to the publication of banns concerning his marriage to Y. It was held that X had a fraudulent intention to conceal his true identity and therefore the marriage banns had not been properly published. The marriage was therefore void.

Similarly, in **Chipchase v Chipchase** (supra), a woman named Matthews married Leetch in 1915; he deserted her in 1916. In 1928 she married the petitioner, following banns published in the name of Matthews. She was generally known by this name and had used it for two years before her marriage to the petitioner. Her motive was, apparently, a wish not to emphasise the fact of her marriage to Leetch. The justices held that the second marriage was void because there had been no due publication of the banns. She appealed to the Divisional Court. The appeal was allowed and the case was remitted to the justices for a determination of the question as to whether she had knowingly and wilfully concealed her

identity in relation to the publication of the banns. Merriman P stated in this decision that; “I think it quite clear that the justices have not had their minds directed to the established interpretation of the Marriage Act 1823, s 22 [‘Provided always, that if persons shall knowingly and wilfully intermarry without due publication of banns ... the marriage of such persons shall be null and void to all intents and purposes whatsoever.’] The object of this Act was to prevent clandestine marriages. There must be an element of intentional concealment of identity before it can be said that the marriage is void for undue publication of banns. I do not think that this element of the matter was considered sufficiently by the justices. *Small v Small* was cited. In that case unquestionably there was the element of deliberate concealment, and the motive was quite plain. It may be that this is such another case, but, at any rate, the wife must have the opportunity of establishing, as counsel says she is able to establish, that the name in which she was married was the name by which for years she had been commonly known, and that there was no intention to conceal her identity in the particular circumstances of this case.”

c) Discovery of impediments.

Normally marriage banns are announced three times after which the parties may marry after the third publication.

The marriage must be solemnized in one of the churches where the banns have been published.

Celebration of the marriage:

Church marriage

Marriage may be celebrated in any licensed place of worship by a recognized minister of the church, denomination or body to which the place of worship belongs, and according to the rites or usages of marriage observed in that church, denomination or body.

The marriage must be celebrated with open doors [within] between the hours of 8 o'clock in the forenoon and six o'clock in the afternoon and in the presence of two or more witnesses besides the officiating minister.

If any impediments or any just cause exist(s) the church minister is precluded under **S.21** from celebrating the marriage unless the parties deliver to him or her a registrar's certificate or Minister's license.

Civil Marriage

After a certificate under **Ss. 10 or 15** or a license under **S.12** has been issued, the parties, may, if they think fit, contract a marriage before a registrar.

It should be in the presence of two witnesses in his or her office with open doors, between the hours of 10 o'clock in the forenoon and 4 o'clock in the afternoon. (Refer to **Ss.12 and 26**)

Questions shall be asked by the registrar designed to satisfy that the parties understand the implication of their marriage.

The Registrar after the marriage has been celebrated should issue a marriage certificate to the parties signed by the parties and witnesses from the church or registrar's office as well as the person who conducted the celebration.

The parties will be given a copy of the certificate and the Registrar or Church minister will also remain with a copy. (Refer to **Ss. 24 and 27**)

The reason why marriages under the Act should be celebrated in open doors is for the public to be aware of what is taking place.

The case of **Puttick v AG [1979] 3 WLR 542** is instructive on the purpose of publication of banns and its difference from a marriage by license where Baker P stated that; "A clear distinction has been recognised by the English courts between marriage by banns and marriage by licence. In the former, a misdescription of a party renders the marriage void because there has not been the required publicity. In the

case of marriage by licence there is no such requirement and no such result follows, for the object of the licence is not publicity but identity.”

4.2. Mohammedan Marriages.

Law applicable:

1. The Marriage and Divorce of Mohammedans Act Cap 252
2. The Marriage and Divorce of Mohammedans (Appointment of Registrars) Order S.I 252_1.
3. The Marriage and Divorce of Mohammedans (Jurisdiction in Matrimonial Causes) Instrument S.I 252_3
4. Sharia laws or Islamic laws.

Primary Requirements

1. Mutual agreement (Ijab-O-Qubul) by the bride and the groom.
2. Two adult and sane witnesses.
3. Mahr (marriage-gift) to be paid by the groom to the bride either immediately (muajjal) or deferred (muakhkhar), or a combination of both.

Secondary Requirements

1. Legal guardian (wakeel) representing the bride.
2. Written marriage contract (“Aqd-Nikah) signed by the bride and the groom and witnesses by two adult and sane witnesses.
3. Qadi (State appointed Muslim judge) or Ma’zoon (a responsible person officiating the marriage ceremony).
4. Khutba-tun-Nikah to solemnize the marriage.

Marriage (nikah) is a solemn and sacred social contract between bride and groom. This contract is a strong covenant (mithaqun Ghalithun) as expressed in Quran 4:21). The marriage contract in Islam is not a sacrament. It is revocable.

Both parties mutually agree and enter into this contract. Both bride and groom have the liberty to define various terms and conditions of their liking and make them a part of this contract.

Mahr

The marriage-gift (Mahr) is a divine injunction. The giving of mahr to the bride by the groom is an essential part of the contract. The Quran under 4:4 states that; “And give the women (on marriage) their mahr as a (nikah) free gift”

Mahr is a token commitment of the husband's responsibility and may be paid in cash, property or movable objects to the bride herself. The amount of mahr is not legally specified, however, moderation according to the existing social norm is recommended. The mahr may be paid immediately to the bride at the time of marriage, or deferred to a later date, or a combination of both. The deferred mahr however, falls due in case of death or divorce. To this, the Prophet (PBUH) said, “Go and look for something even if it is a ring of iron.” Narrated by al-Bukhaari (5121) and Muslim (1425).

It is mustahabb to make the mahr simple and easy, because the Prophet (peace and blessings of Allaah be upon him) said: “The best of dowries is the simplest.” Narrated by al-Haakim and al-Bayhaqi and classed as saheeh by al-Albaani in Saheeh al-Jaami' (3279). And he (peace and blessings of Allaah be upon him) said: “The best of marriage is the simplest.” Narrated by Ibn Hibbaan and classed as saheeh by al-Albaani in Saheeh al-Jaami' (3300).

The following points are worthy of consideration:

- a) Mahr must be agreed upon by the marrying partners themselves, not by parents.
- b) Mahr is her right, to which her husband remains indebted.

c) It is a free gift and not her price.

The assembly of nikah is addressed with a marriage sermon (khutba-tun- nikah) by the Muslim officiating the marriage. In marriage societies, customarily, a state appointed Muslim judge (Qadi) officiates the nikah ceremony and keeps the record of the marriage contract. However any trust worthy practicing Muslim can conduct the nikah ceremony, as Islam does not advocate priesthood. The documents of marriage contract/certificate are filed with the mosque (masjid). (Refer to S.5 of the Act)

According to Shariah, the wife-to-be says, ‘An Kah’tu nafsaka a’lal mah’ril ma’loom’

“I have given away myself in Nikah to you, on the agreed Mahr.”

Immediately, the man (bridegroom) says, ‘Qabiltun Nikaha’. “I have accepted the Nikah.”

With these pronouncements, they become husband and wife.

If the marrying partners are not able to recite the formula in Arabic, one or two persons or priests are appointed and authorized to officiate. One who represents the bride would first seek her explicit consent to officiate on her behalf, and so would the other who acts on behalf of the groom.

Naturally, there would be a slight variation in the pronouncements, because the persons reciting them are appointees. A person who represents the bride would initiate by saying, “Ankah’tu muwakkilati muwakkilaka a’lal mah’ril ma’loom.” “I give away in Nikah the woman who has thus appointed and authorized me, to the man who has authorized you, on an agreed Mahr.”

The groom’s representative would respond, “Qabiltunnikaaha limuwakkili a’lal mah’ril ma’loom.”

“I accept the Nikah on behalf of the one who has appointed me, on the agreed Mahr.”

It is mustahab to recite a brief discourse or Khutba before the Nikah formula is enunciated.

In this Khutba, Allah is praised for His Wisdom in regulating

the lawful process of procreation, and then the traditions from the Prophet (S) are also recited.

Time of marriage ceremony

Though basically marriage is allowed at all times, there are some days on which marriage is not recommended; some of these are based on ahadith and some on cultural, historical reasons.

Generally, we can categorize these days into three: (a) There are some ahadith which say that it is makruh (not recommended) to have a marriage ceremony on the days when the moon is in the constellation of Scorpio (this is known as al-qamar fil aqrab or qamar dar aqrab), during the last two or three days of the lunar months, and on Wednesdays. (b) There are certain days of the Islamic calendar which have become associated with the early events of the Islamic history; for example, the 10th of Muharram is the day of mourning for the massacre at Karbala or the day of the Prophet (S)'s death in Safar, etc. Since such days are commemorated by the Muslims as days of mourning, it is socially and, to some extent, religiously not recommended to have a marriage ceremony on such days.

The Shi'ah Ithna Ashari (Twelver Shi'ahs), especially in India and Pakistan, rarely perform marriage ceremony between the 1st of Muharram and the 8th of Rabi al-Awwal as this period includes the mourning days of Muharram culminating in the martyrdom of Imam Askari (A.S.). The 9th Rabi al- Awwal is celebrated as Eid-e-Zahra.

If there is a need, however, Nikah can be performed at any time.

Permission of the Bride-to-be/Father

The girl's consent is necessary and has to be taken by her representative, directly.

In case of a virgin/spinster the father's or the grandfather's permission is also necessary. However if the permission is unreasonably withheld under some conditions or the girl has no father/paternal grandfather it is not necessary.

However, a woman who is not a virgin does not require any permission in case of remarriage.

4.3. Customary Marriages

Law applicable

1. Constitution.
2. Customary Marriages Registration Act Cap 248.
3. Customary Marriages (Registration.) Prescription of Forms and fees) Regulations SI 248_1.
4. Customary laws of various tribes and Case law.
5. The Marriage Act Cap 251.
6. Judicature Act Cap 13.

Nature of the Marriage

According to S.4 (2) of the Customary Marriages Registration Act, Customary marriages are potentially polygamous. In **John Tom Kintu v Myllious Gafabusa Kintu High Court Divorce Appeal No. 135 of 1995** it was stated by Justice S.B. Bossa as she was then that, "...if a person married under customary law continues to marry more wives under the same type of marriage, he doesn't commit adultery thereby [the marriage is polygamous]. I think however, that the situation is different where the other person involved is not legally married to that person under customary law. There the association must be clearly adulterous."

A customary marriage is defined under S.1 (b) of the Act to mean a marriage celebrated according to the rites of an African community and one of the parties to which is a member of that community, or any marriage celebrated under Part III of this Act.

In **Uganda v Peter Kato and 3 others [1976] HCB 204**, Ssekandi J as he was then, held that the test of determining what a marriage is, under customary law, is whether the union is treated as a marriage by the laws or customs of the nation, race or sect to which the parties.

Where the parties are from different tribes, the customs of the woman would be followed in case of a customary marriage. Such customs should

not be contrary to the principles of natural justice. (Refer to **Article 2** of the Constitution and **S.15** of the Judicature Act.)

The custom being relied on by a party in court must be established by them to the satisfaction of court so that the Court may take judicial notice of it.

In **Ernest Kinyanjui Kimani v Muiru Gikanga and another [1965] 1**

EA 735, it was held that where African customary law is neither notorious nor documented it must be established for the court's guidance by the party intending to rely on it and that as a matter of practice and convenience in civil cases the relevant customary law, if it is incapable of being judicially noticed, should be proved by evidence or expert opinions adduced by the parties. (Also refer to **Halsbury's Laws of England, 3rd Edition, Vol. 15** – "Judicial notice is taken of facts which are familiar to any judicial tribunal by virtue of their universal notoriety or regular occurrence in the ordinary course of nature or business. As judges must bring to the consideration of the questions they have to decide their knowledge of the common affairs of life, it is not necessary on the trial of any action to give formal evidence of matters with which men of ordinary intelligence are acquainted whether in general or to natural phenomenon." And also **Mifumi (U) Ltd & another vs Attorney General & Another Constitutional appeal No. 2 of 2014** where the Court observed that, "It is not necessary to require that the custom should be formally proved in court in order for the court to know it exists..."

There is no general customary law in Uganda and therefore each tribe is guided by its customary beliefs which may not necessarily be uniform.

However in **Nassanga v Nanyonga [1977] HCB 314**, it was held that where the intending parties to the customary marriage are of different tribes, the tribal customs of the girl should be observed. (However, I have reservations on this case.)

Preliminaries to the Customary Marriage;

These cut across all communities

1. Bride wealth.

This is a token of gratitude to the bride's family for the girl's nurturing and upbringing. . It may either be in monetary form or simple household gifts. The bride's family may demand for this token and where it is demanded for, until when it is paid, the marriage is not yet concluded that is, it is voidable.

It is worth noting that the Act does not spell out how much should be paid therefore each custom is free to set its terms and the kin have freedom to exercise their bargaining power as was the case in **Case v Ruguru [1970] 1 EA 55**.

Read **Aggrey Owor v Rosette Tagire HCCS No. 178 of 2000** and **Mifumi (U) Ltd & another vs Attorney General & Another** (supra).

2. Consent

In most customs, the consent of the girl was not always obtained though that of the parents or any other person in loco parentis would be sought before the marriage.

Among the Itesots however, their by-laws prohibited a parent from inducing their daughter into a marriage and it was an offence to marry off the girl without her will.

The Constitution as already noted prohibits any cultural practices that are contrary to it this can be seen in Article 2. More specifically, Article 31 of the Constitution requires that that the parties to a marriage should exercise free will and consent before contracting the marriage.

In **Pamela Sabina Mbabazi vs. Henry Bazira Civil Appeal No. 44 of 2004**, the Court of Appeal had underscored the necessity of the couple's consent to marry.

3. Age of Marriage.

Traditionally, there is no specific age of marriage for the intending parties to this marriage. Section 11(a) of the Customary Marriages (Registration) Act makes the age of marriage for the bride sixteen years and subsection

(b) makes that for groom eighteen years. The section renders marriages below such ages respectively as void.

However, Article 31 of the Constitution provides that persons of eighteen years and above can consent to marriage therefore the same argument holds for a customary marriage though most custom in Uganda still go on and marry at lower ages. In the words of Tumwesigye JSC in **Mifumi (U) Ltd & another vs Attorney General & Another**, “...justification for the maintenance of a custom cannot be based on its popularity alone. It would still be unacceptable if it were harmful.”

4. Prohibited Decrees

These range from affinity and kindred relationships and they are observed in all communities of Uganda but the range to which they apply is determined by the Act under S.11 (d) and the 2nd Schedule of the Act.

Celebration of the marriage;

As earlier noted the mode of celebration depends on the customs professed by the parties since the Act does not expressly spell out such formalities.

The only thing the Act says is that the marriage should be celebrated in any part of Uganda.

To note here, it is advisable that as soon as possible but not later than six months after the celebration of the marriage, it should be registered.

However, the marriage can be registered even after the statutory six months upon payment of the prescribed fees by attending the office of the Registrar with at least two witnesses as provided for under Section 6 and 8 of the Act.

Also worth noting is that as was held in **Nassanga v Nanyonga [1977] HCB 314**, non-registration does not invalidate a customary marriage.

After registration, S.7 provides for the issuance of a Customary Marriage Certificate.

Customary Marriage between non-Ugandans;

Part III of the Act provides for marriages between persons that do not belong to any indigenous tribe in Uganda.

S.21 of the Act provides that one of the parties to the intended marriage should must sign and give the registrar of the district in which the marriage is to take place notice.

The registrar under S.24 will enter the notice in the Customary Marriage Notice book and publish it by placing a copy of it outside his or her office until when a certificate is granted.

The parties are required to swear an affidavit under **S.25** stating that one of the parties has been resident within the marriage district at least fifteen days preceding the grant of the certificate, that each party has attained the age of 21 or being below, that the requisite consent has been attached thereto and that the parties to the marriage are not within the prohibited degrees of kinship.

The other option would be to obtain confirmation of the Minister under **S.26** of the Act for the marriage to take place in lieu of giving notice to the Registrar.

Under **S. 27**, any person whose consent is required, or who may know of any just cause why the customary marriage should not take place, may enter a caveat against the issue of the registrar's certificate, by writing at any time before the issue of the certificate the word "Forbidden" opposite to the entry of the notice in the customary marriage notice book, and appending to it his or her name and place of abode, and the grounds upon or by reason of which he or she claims to forbid the issue of the certificate, and the registrar shall not issue his or her certificate until the caveat shall be removed as hereafter provided.

Where the objector is outside Uganda, the objection shall be made in accordance with the laws of his or her country and authenticated by a notary public, consul or other person authorised by the laws of that country under S.28 of the Act.

The Registrar under S.29 shall refer the matter to a Chief Magistrate where a caveat is entered which Magistrate shall summon all the parties to show cause why the marriage should or should not take place.

Void and voidable marriages under customary law;

The concept of void and voidable marriages was recognised under customary law and the ground for which depend on the different communities.

Some of the grounds include failure to pay bride price, the woman being pregnant by another man by the time of the marriage, adultery of the woman during the marriage or where either of the parties practiced witchcraft.

The Act under **Ss.11 to 13** gives grounds that make a marriage void.

S.11 states that the marriage shall be void if;

- a) the female party has not attained the age of sixteen,
- b) the male party to it has not attained the age of eighteen,
- c) one of the parties to it is of unsound mind,
- d) the parties to it are within the prohibited degrees of consanguinity or the marriage is prohibited by custom of one of the parties, and;
- e) one of the parties has previously contracted a monogamous marriage.

Section 12 of the Act provides that, notwithstanding the provisions of S.36 of the Marriage act, where a person was married under the Marriage act or any other law relating to marriage and subsequently contracted a

customary marriage during the subsistence of a previous monogamous marriage, but before the into force of this Act, such subsequent customary marriages shall be deemed to be valid. The Section puts an exception to those marriages prior to coming into force of the Act.

In **Gakwavu v Mariana Gasenganyire [1977] HCB 322** , it was held by Ssekandi J as he was then that, “The customary marriages [registration] Decree came into force on 1st October 1973 and by S.11(1) of the decree, a customary marriage contracted during the subsistence of a monogamous marriage before the decree came into force is deemed to be valid. In the instant case, the respondent contracted the customary marriage with Apolonia Mukandoli on 1st October 1973, the date the Decree came into force. Therefore the marriage was not validated by the Decree.”

Section 13, provides that where a person contracts a marriage under the Act and subsequently contracts a monogamous marriage or Islamic marriage with another person, the validity of the customary marriage shall not be affected by such monogamous or Islamic marriage, but such monogamous marriage or Islamic marriage shall be void.

This provision makes it impossible for someone married under the Act to contract a monogamous marriage with another person while this marriage is still subsisting.

5. Suspension and Termination of Marital Obligations

Suspension or termination of marital obligations in Uganda is three-fold;

1. Death.
2. By Mutual agreement and Judicial Separation
3. By a Court Order or Divorce.

5.1. Death

The death of either party to a marriage ipso facto brings the marriage to an end.

This is a rather old ground through which a marriage traditionally was presumed to have come to an end. If H's spouse, W, disappeared in such circumstances as to lead to the reasonable inference that they were dead, H would remarry without committing the offence of Bigamy and the second marriage would be presumed to be valid.

However, if it were later proved that the spouse was in fact alive when H remarried, then, the second marriage would be void.

There is no express provision under the Ugandan laws that provides for dissolution of a marriage by death. However, by implication **Section 39** of the Divorce Act Cap 249, hints on such a dissolution and the fact that parties can remarry.

Death in these circumstances is a rebuttable presumption. The presumption of death is dealt with in different statutes.

Section 108 of the Evidence Act for instance provides on whom the burden of proof lies in a case where the question of whether a person is dead or alive arises. The provision provides for a time lapse of seven years. If it is proved that after seven years a person has not been heard from by those who would naturally have heard of him or her if he or she had been alive, the burden of proving that he or she is alive is shifted to the person who affirms it.

For purposes of administration of the estate of such a person, **Section 20** of the Estates of Missing Persons Management Act Cap. 159 provides for a time period of three years.

The petitioner is however not required to rely on these time frames if they can produce evidence to the satisfaction of a Court of law that the spouse is dead. However, the timeframes will be of great importance when there is no evidence at all of what has happened to the spouse.

5.2. Mutual agreement and separation

A separation occurs where a husband and wife agree to stay apart for a given period after which they could decide to either get back together or initiate divorce proceedings.

In **Lister's Case, 8 Mod. 22**, it was stated by the court that, "An agreement between husband and wife to live separate, and that she shall have a separate maintenance, shall bind them both until they both agree to cohabit again; and, if the wife be willing to return to her husband, no court will interpose or obstruct her. But, as to the coercive power which the husband has over his wife, it is not a power to confine her; for by the law of [England] she is entitled to all reasonable liberty, if her behaviour is not very bad."

The parties usually agree on custody and maintenance of the children and either party.

This type of separation can either be by court order or by simple mutual agreement. Both types of agreements are enforceable by court.

Whether the order is by a court of law or the agreement initiated by the parties, it does not mean that the marriage has ended. The parties are both de facto and de jure husband and wife though they have suspended some conjugal rights. (Read; **Besant v. Wood (1879) 12 Ch. D. 605**)

In **Ringsted v Lanesborough 3 Doug. 197 (K.B. 1783)**, Lord and Lady Lanesborough had separated and had agreed on how to share the property. The husband moved to Ireland while the wife stayed in England where she contracted some sundry debts and when a suit was brought against her, she defended herself saying that she was actually married and that the husband was liable for these debts as necessities. Lord Mansfield in his judgement said the effect of a separation agreement as thus; "The agreement of separation bound both the parties in the same manner as if they had been sole, and the court will not suffer either of them to break through it. Under the agreement the wife possesses a separate property. She is no longer under the control of her husband, and creditors, even for necessities, have no remedy against him. Credit was given to her as a single woman; and shall she now be permitted to say that she was not single? . . . We are of opinion

that the case resembles abjuration or exile in every particular, that the wife therefore may be sued alone, and that she cannot avail herself of this most iniquitous defence”

There is no provision under the laws that provides for the mutual agreement to separate out of court and how the agreement should be framed but the rules are developed out of common law, however, the period of separation should not exceed two years.

The guiding principle on separation agreements was laid out by the House of Lords in **Fender v. St. John-Mildmay [1937] AC 1** as simply that it should not be against public policy.

The first and cardinal clause to include in a separation agreement is that the parties agree to leave apart.

The reason why parties usually opt to go for separation agreements when they can go for judicial separation is because they lack the grounds to obtain the judicial separation

5.2.1. Judicial separation

This remedy is usually sought after where the parties lack the grounds of divorce.

The grounds for Judicial separation are provided for under **Section 14** of the Divorce Act, thus a husband or wife may apply by petition to the court for a judicial separation on the ground of cruelty, adultery, or desertion without reasonable excuse for two years or upwards, and the court, on being satisfied that the allegations of the petition are true, and that there is no legal ground why the application should not be granted, may decree judicial separation accordingly.

Read **Nunzio Colarossi v Michelina Colarossi [1965] 1 EA 129**. Also, **Gakwavu v Gasengayire [1977] HCB 322**

The decree and its effects;

Under **Section 15** of the Divorce Act, although the marriage is still subsisting, the wife is treated to be un-married with regard to property she acquires from the date of the decree.

The decree relieves the petitioner from the duty of cohabiting with the respondent. This means that as long as it is in force neither spouse can be in desertion, and also that a husband who has intercourse with his wife against her will may be guilty of rape.

In **R v Clarke [1949] 2 All ER 448**, the defendant was accused of the rape of his wife and assault. At the time they were separated by virtue of a court order recently obtained by her. He replied that the offence alleged was not known to law because of the marriage. It was held that the separation order amounted to a withdrawal by the wife of the consent implied by the marriage. He could be guilty of the rape alleged.

The wife as already noted is treated as un-married and therefore under **Section 16**, she can sue and be sued in her own names and her husband shall not be liable in any way.

The court has power to make a number of orders relating to the custody and welfare of the children of the marriage to financial relief.

As noted under **Section 15** of the Act, the decree will also affect the devolution of a spouse's property if he or she dies intestate.

It is worth noting that for all other purposes the spouses remain husband and wife and neither of them is at liberty to remarry and all legal disabilities that come with this status remain in force. For example in **Moss v Moss [1963] 2 ALL ER 829** the Court held inter alia that, in criminal cases, subject to certain common law and statutory exceptions, a spouse is incompetent to give evidence against the other, and the incompetence continues after a decree absolute for divorce or a decree of nullity (where the marriage annulled was merely voidable) in respect of matters which arose during the coverture and applies to the spouses notwithstanding a decree of judicial separation.

Discharge of the decree;

Under **Section 17** of the Act, the decree of judicial separation may be reversed by the court on application of any party to the marriage by either showing that it was obtained ex-parte or if desertion was the ground of the decree the person's petition for reversal may prove that there was reasonable ground for the desertion.

The other ground is showing that the spouses have resumed cohabitation. In **Haddon v Haddon (1887) 18 QBD 778**, the court noted that the effect of a resumption of cohabitation is to put an end to the legal existence of the order and to render it no longer operative.

In **Oram v Oram (1923) 129 LT 159**, an application was made by petitioner for discharge of a decree of judicial separation at the suit of W on the ground of H's adultery. W had subsequently petitioned for increased alimony, but during those proceedings, H had been taken ill and W had nursed him. A reconciliation followed and the parties lived together until H left W. Petitioner asked that the decree of judicial separation be discharged. The court was able to discharge a decree of judicial separation when the parties, by resuming cohabitation, appear to have put an end to it. The court has an inherent power to discharge an order which has become ineffective.

Also where the parties' agreed period of separation or the court period ends.

5.3. Divorce;

Divorce involves the termination of marriage by a court of competent jurisdiction. The law relating to divorce is consolidated in the Divorce Act Cap 249 and the rules made there under. However, different types of marriages have their modes of divorce as we shall discuss below.

It should be noted that for court to pass a decree of divorce, the Petitioner should have been domiciled in Uganda at the time the petition is presented. This is provided for under **Section 1** of the Divorce Act.

In **John H R Thornhill v Islay Thornhill & another** [1964] 1 EA 616, the Petitioner's petition was dismissed by the Court because the Petitioner failed to prove that they were domiciled in Uganda. The court stated that, "there was insufficient evidence of a settled intention on the part of the petitioner to remain in Uganda permanently to enable the court to hold that he had acquired a domicile of choice there."

Furthermore, **Section 3** provides for jurisdiction of the Courts in Divorce matters. Where all parties are Africans or where a petition for damages only is lodged in accordance with section 21, jurisdiction may be exercised by a court over which presides a magistrate grade I or a chief magistrate and in other cases jurisdiction shall be exercised by the High Court only.

5.3.1. Divorce under the Divorce Act.

The grounds for Divorce under the Divorce Act are provided for under **Section 4(1)** of the Act. It is worth noting from the onset that these grounds contrary to their current wording, they were modified by the Constitutional Court in **Uganda Association of Women lawyers and others v Attorney General (Constitutional Petition No. 2 of 2003)**, where the Court unanimously noted that all grounds of divorce are available to both parties to the marriage and the provisions so do the provisions apply to both women and men who are parties to that petition.

Grounds for Divorce

5.3.1.1. Adultery

Adultery is described in this context as an act of voluntary sexual intercourse (which need not be completed) between two persons not married to each other, but one or more of whom are married at the time of the act to a third person.

Definition and proof of adultery

Veronica Habyarimana v Perfect Habyarimana [1980] HCB 139

Per Odoki J (as he was then):

“From available authorities adultery is defined as consensual sexual intercourse during the subsistence of the marriage between one spouse and a person of the opposite sex not the other’s spouse. It is sexual intercourse between two persons whom one or both are married but who are not married to each other...adultery as a criminal offence is

committed when a person has sexual intercourse with any married person who is not their spouse. It is not therefore a criminal offence for a married man to have sexual intercourse with an unmarried woman but such conduct amounts to the matrimonial offence of adultery...in adultery, the burden of proof lies throughout on the person alleging it, there being no presumption of innocence...on the standard of proof of adultery, it is now well settled that where there is an allegation of adultery, it must be proved to the satisfaction of the court. While the evidence need not reach certainty, nevertheless, it must carry a high degree of probability. In Uganda, where adultery is also a criminal offence there is stronger reason for demanding a higher standard of proof than in ordinary civil proceedings [Blyth v Blyth [1966] AC 643].”

Bater v Bater [1951] P 35

Per Lord Denning LJ:

“In civil cases, the case may be proved by a preponderance of probability, but there may be degrees of probability within that standard. The degree depends on the subject matter. A civil court, when considering a charge of fraud, will naturally require a higher degree of probability than that which it would require when considering negligence. It does not adopt so high a degree as a criminal court, even when considering a charge of a criminal nature; but still it does require a degree of probability which is commensurate with the occasion. Likewise, a divorce court should require a degree of probability which is proportionate to the subject matter.”

Redpath v Redpath [1950] 1 All ER 600

H and W were married in September 1938, In June 1944 W complained that she had been raped by X. X was charged with rape and was acquitted. In 1948 H filed a petition which alleged that, in June 1944, W committed adultery with X. The judge dismissed the allegation of adultery, stating that,

given proof of an act of intercourse, the burden was on H to show that W had consented to the act. H appealed.

The Court of Appeal held that the judge was in error. Once intercourse is established, the burden is on respondent to show that the intercourse was involuntary.

Per Bucknill LJ:

“Sexual intercourse is normally a consensual act, that is to say it requires the consenting minds and bodies of both parties. In my view once the act of intercourse is established, the burden rests on W to show that the act was one into which she was forced against her will. I do not think that H can be expected to prove the state of W’s mind when the act of intercourse took place. On the other hand [under s 4(2) MCA 1937 UK] the court must be satisfied that adultery was committed. Where, at the end of the case there is a doubt in the judge’s mind as to whether adultery has taken place or whether it is a case of rape, it is his duty to dismiss the petition. In this present case the judge has placed an unnecessary burden of proof on H; that has, in part, led him to arrive at an incorrect decision. In the circumstances I am satisfied that W committed adultery and that the judge was in error in finding that adultery had not been proved.”

Malin v Versani Divorce Cause no. 2 of 1962

Held Sir Udo Udoma:

“Adultery is essentially an act which can barely be proved by direct evidence. It is a matter of reference to circumstances. It is easy to suffice conditions that leave no doubt that adultery has been committed. The mere fact of people being together is not sufficient to show that adultery was committed.”

Dr. Specioza Kazibwe v Eng. Charles Kazibwe Divorce Cause no.3 of 2003

“Each of the grounds for divorce specified under Section 4 of the Divorce Act are available equally to both the husband and wife... adultery can be proved by circumstantial evidence or admission; in this case, it was admitted.”

Dennis v Dennis [1955] 2 ALLER 651 CA

H was impotent. He had spent a night in bed with a woman who was not his wife, thus creating an inference that he had committed an act of adultery. It was established that H had not penetrated the woman. It was held that there must be some penetration if an act of adultery is to be proved.

Per Singleton LJ:

“Adultery cannot be proved unless there be some penetration. It is not necessary that the complete act of intercourse should take place. If there is penetration by the man of the woman, adultery may be found, but if there is not more than an attempt, I do not think that a finding of adultery would be right ... The inference of adultery is capable of being rebutted and on the findings of the commissioner in the present case it was rebutted, for he has found that at the time at which the two were together, H was impotent in regard to X at least ... That was the finding of the commissioner and I am satisfied that, on that finding of fact, he took the only course which he was entitled to take. He declined to find that adultery was proved.”

5.3.1.2. Cruelty

Cruelty occurs where one spouse conducts him or herself in a manner which causes injury to the other or a reasonable apprehension of injury or harm on one's life or injury for example, battery, denial of conjugal rights, too much demanding of sexual intercourse and nagging.

The lack of intention to injure is not a defense.

Definition and proof of cruelty

Veronica Habyarimana v Perfect Habyarimana (supra)

Per Odoki J (as he was then):

“There is no definition of cruelty in the Divorce Act but case law has established that no conduct can amount to cruelty in law unless it has the effect of producing actual or apprehended injury to the petitioner's physical or mental health. There must be danger to life, limbs or health or mental, or a reasonable apprehension of it, to constitute legal cruelty (Kasasa v Kasasa Divorce Cause No. 13 of 1976 HCB 348)...To constitute

cruelty the conduct complained of must be serious. It must be higher than the ordinary wear and tear of married life. It is therefore the effect of the conduct rather than its nature which is of paramount importance in assessing a charge of cruelty and it must be proved that the respondent however mindless of the consequences has behaved in a way which the petitioner could not in the circumstances be called upon to ensure that such conduct caused injury to health or reasonable apprehension of it...In determining whether conduct

amounts to cruelty, the general rule is stated in 12 Halsbury's laws of England Vol. 3 pages 270-271 as follows: the general rule in all questions of cruelty is that the whole matrimonial relations must be considered, and that the rule is of special value when the cruelty consists not of violent acts but of injurious reproaches, complaints, accusations and taunts. Before coming to a conclusion, the judge must consider the impact of the personality and the conduct of one spouse on the mind of the other, and all incidents and quarrels between the spouses must be weighed from that point of view. In determining what constitutes cruelty regard must be had to the circumstances of each case, keeping always in view the physical and mental condition of the parties and their social character and social status."

Gakwavu v Mariana Gasengayire [1977] HCB 322

Per Ssekandi J:

"The Courts cannot examine every petty squabble in a marriage to build a case of cruelty... the standard of proof of cruelty is not beyond reasonable doubt as required in criminal cases. But like in adultery, in cruelty the standard of proof is slightly higher than in a preponderance of probabilities required in ordinary civil case...for a marriage bond cannot be set asunder lightly."

Also read: **Midwa v Midwa [2000] 2 EA 453**

Colbeck v Colbeck [1961] EA 431

P(D) v P(J) [1965] 2 ALLER 456

5.3.1.3. Desertion

Desertion occurs where the spouse leaves the matrimonial home with an intention not to return and this continues for a period of time of two or

more years. It can also take place where the parties still stay together in the same house or room.

It also connotes to the withdrawal from the society of the other without reasonable excuse.

Definition and proof desertion

Rose Katungye v Salex Katungye (1999) KALR 891

“[Desertion] is the withdraw of cohabitation by one spouse from the other whether actual or constructive without reasonable excuse for two or more years.”

Desertion embodies four elements;

- De facto separation
- Animus Deserendi (intention to desert)
- Absence of consent on the part of the deserted spouse
- Absence of any reasonable cause for withdrawing from cohabitation on part of the deserting spouse.

Read **Patel (PO) v Patel (LP) [1965] EA 560**

De facto separation

It is not necessary to withdraw from a place but from a state of things. This simply means that desertion can exist even when the parties are living under the same roof.

In **Hopes v Hopes [1949] P 227**, H and W were occupying separate bedrooms. H petitioned for divorce on the ground of desertion. He argued that W had moved into a separate bedroom, sexual intercourse had ended and she failed to look after him. Evidence was given, however, that W cooked for H and his meals were taken in a common dining room with W and his daughters. It was held that there was no de facto separation and,

therefore, no desertion. H's petition failed. Per Lord Denning:

“One of the essential elements of desertion is the fact of separation. Can that exist while the parties are living under the same roof? My answer is, yes ... It is important to draw

a clear line between desertion, which is a ground for divorce, and gross neglect or chronic discord, which is not. That line is drawn at the point where the parties are living separately and apart. In cases where they are living under the same roof, that point is reached when they cease to be one household and become two households, or, in other words, when H and W are no longer residing with one another or cohabiting with one another.”

Read also **Winnan v Winnan [1948] 2 ALLER 862**

Animus Deserendi (intention to desert)

It must be proved that it was the intention of the spouse to choose to remain separated permanently. If for example a party chooses to go and pursue further studies for a period of time, it cannot amount to desertion.

In **Crowther v Crowther [1951] 1 All ER 1131**, W filed a petition for divorce on the ground that H had deserted her in June 1948. H was detained in a mental hospital from 29 July 1948 to 10 October 1948, as a person of unsound mind. It was argued that, during H’s detention, he lacked the capacity either to form or sustain the necessary animus deserendi, so that, effectively, he had not been in desertion of W for the necessary continuous period of three years immediately preceding W’s presentation of her petition. The House of Lords heard the appeal and held that W had the right to be allowed to show that H was capable of possessing the appropriate animus deserendi throughout the appropriate period. She did not show this and her petition therefore failed.

Per Lord Reid:

“There are many degrees of mental incapacity and there appears to be no definition of that degree of mental incapacity which is necessary to justify a reception order. In the absence of such a definition it is not obvious to me that there cannot be a case where a reception order is justified, but where, nevertheless, the individual detained still possesses a mind capable of maintaining an animus deserendi. I am of opinion, therefore, that this wife ought to be allowed to prove, if she can, that this is such a case. I think that it can be taken to be common knowledge that persons so detained do not generally have such a

mind, so, if it appears that the husband has been detained under a reception order, that does raise a presumption against the wife. I can see no ground for holding that it is more than a presumption.”

Absence of consent on part of the deserted spouse

The party who claims is deserted need not have given their consent before they were left. In **Mallinson v Mallinson [1961] EA 185 at 199**, the court stated that, “It is clear law that if the party alleged to be in desertion left the other with that party’s consent, that is no desertion.”

Absence of any reasonable cause for withdrawing from cohabitation on part of the deserting spouse

As already noted, if the deserting party has a reasonable defence as to why they are moved to leave the consortium of their spouse, then there is no actionable desertion.

In **Quoraishi v Quoraishi [1985] FLR 780**, H and W, both Muslim citizens of Bangladesh, married in Karachi in 1964 and came to live in England. H went to work in Kuwait in 1979 and entered into a second marriage by proxy, according to Muslim law, with a Bangladeshi woman, hoping to have children. On his return to England, W asked H on several occasions to divorce his second wife. When he refused, W left him. Her complaint to the magistrates, alleging desertion, was dismissed on the ground that expert opinion, by which H and W had agreed to abide, stated that a Muslim wife had no cause of complaint regarding a second marriage. H petitioned in 1971 for divorce on the ground of W’s desertion. His petition was dismissed and he appealed. It was held that it was the personal circumstances of H and W which were of significance. It is not necessarily the case in English law that a Muslim woman may not have a just cause for leaving her husband on the ground of a second marriage. H’s appeal would be dismissed.

It is also worth noting that a resumption of cohabitation ends desertion. But as Lord Denning put it in **Bartram v Bartram [1949] 2 ALLER 270**

at 273 that once the period of desertion has begun to run, it does not cease to run simply because the parties attempt a reconciliation, a true reconciliation should be achieved.

In **Mummery v Mummery [1942] 1 ALLER 553**, H, on active service in France, was evacuated in the retreat from Dunkirk (in May–June, 1940).

The relevant period of desertion, upon which W's petition was based, would have terminated in April, 1941. In 1940, H called in to see W while on his way to stay at his grandmother's house. He spent one night with W, and the question arose as to whether the resumption of marital relations for that night was conclusive evidence of H and W having resumed cohabitation so as to bring the state of desertion to an end. It was held that termination of desertion depends on the intention of the parties. An act of sexual intercourse was not conclusive of the question of condonation, and W was entitled to her decree.

Per Merriman P:

"It is clear beyond any possibility of argument that a resumption of cohabitation in the full sense of that phrase puts an end to a state of desertion, not merely because it condones a previous desertion for whatever period that offence has lasted, but also because a resumption of cohabitation is the precise negation of a state of desertion. The two things cannot exist together. In this case ... H had not the slightest intention of resuming cohabitation in the ordinary sense of the word ... It is plain that H resumed a state of desertion again the next day ... Does coming together for a single night raise an irrebuttable presumption that the parties have resumed cohabitation, even for that short time? Put in another way, does it raise an irrebuttable presumption that W, in consenting to that state of things, has condoned the previous desertion? I am bound to say that it would lead to an absurd state of things if one were bound to hold that it were so

... I think the law is that, as regards the wife at any rate, an act of sexual intercourse is not conclusive of condonation, and that it does not raise an irrebuttable presumption that cohabitation has been resumed."

5.3.2. Bars to Divorce

A valid marriage must be proved to exist by a party seeking a divorce. There can therefore be no divorce when the marriage doesn't exist.

There are two types of bars to divorce. They can either be Absolute or Discretionary bars.

5.3.2.1. Absolute bars.

Under **Section 6** of the Divorce Act, the court is required to satisfy itself so far as it reasonably can as to the facts alleged and also whether or not the petitioner has been in any manner accessory to or conniving at the going through of the form of marriage or the adultery complained of, or has condoned it, and shall also inquire into any countercharge which may be made against the petitioner. And under Section 7, the court shall dismiss the petition where any of the above exists.

Therefore absolute bars are three;

- Collusion,
- Condonation, and;
- Connivance.

Collusion

This simply means that the petitioner has setup evidence with the intention of obtaining the divorce.

It could also mean that the petitioner has authorised a matrimonial offence and this should be more in conduct than in words. That is, that the petitioner has made the circumstances conducive for the respondent to commit a matrimonial offence to warrant a divorce petition.

In **Churward v Churchward (1910) p. 195**, the petitioner declined to divorce his wife who wanted to marry the co-respondent until she had made a settlement in favour of the children of the marriage and she agreed to do so since she wanted to be released from the marriage, deposited some amount and the petitioner then filed his petition. It was held that this amounted to collusion. The court stated that there are two kinds of

collusion, where the parties put false facts to facts to form the basis of judgement or where the parties put forward facts which are true but which have been corruptly pre-concocted to form the basis of the judgement.

Condonation

This according to **Mugonya v Mugonya (1975) HCB 295** is a state of forgiveness and reinstatement to the former marital status where both parties forget the past and reconcile.

A wrongful act most commonly a marital offence is committed by the spouse and the petitioner goes ahead and forgives or ignores it. He or she is barred from seeking to use the forgiven act as a ground for divorce.

In **Cramp v. Cramp (1920) P. 158** the decision in this case was that a husband who has sexual intercourse with his wife after knowledge of her adultery must be conclusively presumed to have condoned the offence. Mere forgiveness does not amount to condonation. For condonation to exist the forgiveness must be followed by cohabitation and the restoring of the offending party to their former position as husband or wife.

Similarly, in **Crocker v. Crocker (1921) P. 25** where a soldier who was serving overseas during the war wrote to his wife offering to forgive her for having committed adultery when he was away. The wife accepted the offer but on his return home he changed his mind and petitioned for divorce. It was held that there was no condonation because there was no reinstatement.

Commission of a further marital offence will revive condoned adultery or cruelty. That is where the respondent has committed adultery and cruelty which is condoned by the petitioner if the respondent commits another offence then the condoned offence will revive and the petitioner will be entitled to a divorce on the ground of the condoned act. **Beard v. Beard (1945) 2 All ER** and **Bertram v. Bertram (1944) P. 59**.

Connivance

This is forgiveness with corruption on one of the parties. According to **Gipps v Gipps (1861-1873)**, it is guilt of a corrupt intention of promoting or encouraging either the initiation or continuation of an act amounting to a matrimonial offence.

In such case the other spouse is an accessory to the matrimonial offence. If the court is satisfied of the evidence that the petitioner has been an accessory or has connived at the offence then it has to dismiss the petition. The principles as to what constitutes connivance were laid down in **Churchman v. Churchman (1945) P 44** it was stated as follows:

“It is the essence of connivance that it precedes the event and generally speaking the material event is the inception of the adultery and not its reputation although connivance at the continuous of an adulterous association may show that the party conniving must be taken to have done so at the first. In this case it was stated that the material event is the inception of the adultery, that is when the petitioner first knew of the adulterous association, he must have connived for the adultery to happen.”

In **Godfrey v Godfrey & Wall [1964] 3 ALLER 154**, the court held that a husband petitioner was guilty of connivance at his wife's adultery. The wife told the husband that she was going to live with the co-respondent i.e.

Wall. The co-respondent then came to stay at the matrimonial home. The husband one day after a drink or two came home and found the wife and co-respondent embracing each other. He then told them

“if you two want to go to bed together then why the hell don't you”

which is exactly what the wife and Wall proceeded to do. The next day the petitioner turned the co-respondent out and chased him out of the home but the wife and the co-respondent continued with the association and eventually the wife moved out to live with the co-respondent. When the husband petitioned for divorce on grounds of adultery the court in refusing to grant him the decree held that he had not shown that his initial connivance was not the effective cause of the subsequent adultery.

5.3.2.2. Discretionary bars

Here the court may grant a divorce even if such a discretionary bar exists. This means that the petitioner may be themselves guilty of a matrimonial offence but he or she applies to court to exercise its discretion and overlook the petitioner's own matrimonial offence and grant a petition for divorce.

Section 8 (2) of the Divorce Act has some of these discretionary bars. Unreasonable delay

Delay that is unexplained may be fatal to a petitioner's relief and in **Johnson v. Johnson (1903)** it was stated that the reason why courts insist on steps being taken promptly are that it is a terrible thing that people should go around and about neither married nor unmarried possibly liable to contract fresh and illegal matrimony and certainly exposed to the temptation to commit adultery. The court is saying that once a marital offence has been committed then parties are in a state of limbo, they do not discharge their usual marital obligations and the temptation to commit adultery is there and that is why the court wants them to take steps promptly. In this case the fact that the respondent wife had become insane and had been in an asylum for many years and that the husband had been expecting release by her death was held to be a sufficient answer to a plea of unreasonable delay. In this case the wife just simply refused to die.

In **Binney v. Binney** the husband took no steps for divorce until his wife had been living with another man for 20 years and even so only petitioned for the purpose of freeing himself to marry another woman. It was held that there had been culpable delay and the petition was dismissed.

Petitioner's own Adultery under Section 10 of the Divorce Act

This receives some special treatment because in most cases the petitioner's own adultery is a consequence of the respondent's conduct therefore the courts will look at the circumstances to gauge whether that adultery will bar the petitioner's petition. In **Blunt v. Blunt** the court laid down the

considerations that will be taken into account in exercising its discretion when a petitioner is guilty of adultery as follows:

- (a) The position and interest of any children of the marriage;
- (b) The question whether if the marriage is not dissolved there is a prospect of reconciliation between husband and wife;
- (c) The interest of the petitioner and in particular the interests that the petitioner should be able to remarry and live respectably;
- (d) The interests of the party with whom the petitioner has been guilty of misconduct with special regard to the prospects of future marriage;
- (e) The interests of the community at large to be judged by maintaining a balance between the sanctity of marriage and maintenance of a union which has utterly broken down.

Conducting Conduct

This is conduct which conduces the commission of a marital offence. Therefore cruelty, neglect, desertion or other misconduct towards a spouse who afterwards as a result commits a marital offence may bar the petitioner from obtaining a divorce. **Lander v. Lander (1890)** and **Dixon v. Dixon (1952)** classical decision where the wife refused to agree to intercourse until husband filed for divorce and it was held that the wife was guilty of conducting conduct.

5.3.3. Orders obtained on grant of divorce

First and foremost, the court grants divorce orders in two stages; Decree Nisi

This is provided for under **Section 37** of the Divorce Act. It is made after satisfying court that the alleged grounds in the divorce petition exist.

It is a form of interim order given as a step to give the parties some time to think about their course of action. It is a cooling of order.

Decree Absolute

This is also provided for under Section 37 (2) of the Divorce Act. It is given six months after the decree nisi was given by the court, that is if the parties have failed to reconcile within the six months of the decree nisi.

Fresh evidence may also be adduced to bar the granting of the decree absolute at this stage. If no evidence is adduced to bar the granting of the decree then the decree will be made absolute.

The petitioner ought to show cause within a reasonable time to ensure that the decree nisi is made absolute and failure to do so results in court dismissing the petition.

In **Neogy v Neogy [1967] 1 EA 664**, it was held by the court that there is no power in Uganda for the court to abridge the six month period provided by the Divorce Act, s. 38 (1) between decree nisi and decree absolute.

Costs

Costs under **Section 22** of the Divorce Act may be awarded by the Court if there was proved adultery on the respondent.

Alimony Pendant lite

This is an amount of money the court awards under **Section 23** of the Divorce Act against the husband to pay to his wife for maintenance pending the final disposal of the suit.

This sum shouldn't exceed a fifth of the husband's average net income in the last three years.

The order continues in force until the decree is made absolute. Permanent alimony.

This order is made pursuant to **Section 24** of the Divorce Act. The order is made when the decree nisi is made absolute i.e. when the marriage is dissolved.

It can also be made during judicial separation.

The considerations the court looks into are as follows;

- The wife's fortune or economic standing.
- The ability of the husband to pay.
- The conduct of the parties.

The alimony could be in a lump sum or in installments and can be paid to the wife or a trustee.

This order can also be altered, modified or varied by the Court that made it. An example is the case of **Helen Monica Barrett v James Barrett [1961] 1 EA 503 (HCU)**, where the petitioner sought to vary the order to include the maintenance of children. The court observed that the order was specifically made for the wife under S.25 of the Divorce Ordinance the current Section 24 of the Divorce Act and therefore it was personal to her and died with her but however, it was open for the petitioner to apply for an order for maintenance of the children under a different provision of the law.

5.4. Divorce under customary marriage

A customary marriage is terminated according to the customs of a tribe or community but such customs must be fair and just.

In **John Tom Kintu Muwanga v Myllious Gafabusa Kintu** (supra) it was stated by Justice SB Bossa that, when parties make a choice and opt to be governed by customary law in their marriage, they will be governed by the same rules. The rules of course subject to those rights guaranteed to them in the Constitution.

5.5. Divorce under Islamic or Mohammedan marriages

There are two forms of divorce under Islamic Law

1. Extra Judicial Divorces
2. Judicial Divorces.

Extra Judicial Divorce: There has been misconception about this form of divorce with some people feeling that it is very easy to divorce extra judicially under Islamic Law. However under Islamic Law divorce is discouraged and will only be allowed if the conditions are grave and weighty and even so divorce will be the last resort and reconciliation between the parties is encouraged. This reconciliation is provided for and where the conflict originates from the wife, her husband has the right to judge her, consider the wrong she has committed and make a decision. The husband is also supposed to guide her and show her that what she has done is wrong, and that she should not repeat it. If she repeats her actions, he may then resort to disciplinary action which is in 3 phases,

1. He may start by kind exhortations or reprimands where he denies her a few necessities;
2. He may then withdraw from the matrimonial bed however this should be of a temporary nature; and if this fails
3. He may undertake some symbolic beating but this should not be severe. At this stage he has the right to abstain from sex until the wife reforms.

When in conflict from the husband, the wife has to try and make peace with the husband and try to settle their differences. If all these fail two arbitrators from both sides are appointed to review the situation and to try and settle the dispute. It is only after this that the parties can then resort to divorce if the arbitration fails.

There are a number of extra judicial divorces that the parties can undertake.

Under Islamic Law Divorce is of primarily three types. Talaq, which comprises of modes of divorce at the instance of husband. Khula, which is divorce at the instance of the wife and third is Mubarat, which is mutual consent divorce.

Talaq itself is of three types. These are Talaq Ahsan and Talaq Hasan, both of which are approved by the Quran and Hadith and the third type which is Talaq-i-Bidat, which is neither recognized by the Quran nor the Hadith.

Mulla's Mohammedan Law Section 311 explains the three types of talaq as follows;

a) Talaq-i-Ahsan

Ahsan is a single pronouncement of talaq by the husband followed by a period of abstinence for the iddat period. Iddat period is equivalent to 90 days- i.e. three menstrual courses in case the wife is menstruating or three lunar months in case she is not. If there is resumption of cohabitation or intimacy within that period, the divorce is revoked. If there is no resumption, then the divorce becomes final on expiry of iddat/90 days.

b) Talaq-i-Hasan

Hasan arises if, after the first pronouncement as above, there is resumption of cohabitation within that month or a revocation. The first talaq is thereby revoked. Yet, after such intimacy, if during the second month there has been no intimacy the husband pronounces another 'talaq'. For the divorce to attain finality this is not sufficient-a further month has to pass and a third talaq has to be pronounced whether during or after the iddat. If after the third talaq is not pronounced- or there is resumption of cohabitation before the third talaq is pronounced, whether during or after iddat/three months, the divorce does not come into force. However, if the third talaq is pronounced the divorce is irrevocable. In sum Ahsan is one pronouncement of talaq followed by abstinence thereafter during iddat, whereas Hasan is three pronouncement one-each in three successive months interspersed with abstinence.

c) Talaq-i-bidaat

Talaq bid'a/ bidaat (innovated or not approved is instantaneous divorce). This form is not permitted by either the Quran the Hadith and is in fact contrary to quranic prescriptions. This practice can be traced to 2nd Century after the advent of Islam and is sought to be recognized only by few Sunni schools- the Hanafis most prominently. Even these schools that seek to recognize it, claim it as a sinful form of divorce and seek to justify it

on the ground that “it is bad in theology but good in law”. Talaq-i-bidat is also of two kinds- Uttered in one definitive talaq pronouncement such as “I talaq you irrevocably” or three simultaneous pronouncements i.e. “talaq, talaq, talaq” at one go, the divorce is said to be effected instantaneously and irrevocably. While both the types of talaq-i-bidat are colloquially referred to as triple talaq, the same is a misnomer because of two reasons. First, because Talaq-i-bidat can be effected by either three pronouncements or one pronouncement, as explained above. Second, because even Talaq Hasan has three pronouncements, the difference being that in case of Talaq Hasan these three pronouncements are interspersed in three 30 days periods, over a total of 90 days. Thus, the correct terminology for Talaq-i-bidat is instantaneous talaq and not triple talaq, which is a misnomer.

There are certain conditions to be fulfilled in order to make talaq complete and valid;

- a) The husband must be of age;
- b) He must be seen conscious alert and should not be angry;
- c) He should not be intoxicated;
- d) He should be free from external pressures;
- e) His intention to terminate the marriage must be clear.

On the part of the wife

- a) She should be of age;
- b) Must be in a healthy state of mind;
- c) Must be in a state of purity by which is meant that she should not have had any sexual relations with her husband and should not be menstruating.

The Marriage and Divorce of Mohammedans Act does not provide the grounds of divorce but the principles of Islamic law and some scholars have given some of the following grounds;

- a) Desertion by the husband for a period of 5 years;

- b) Failure of the husband to provide maintenance for a period of two years;
- c) Imprisonment of the husband for a period of 7 years.
- d) Failure of either spouse to perform marital obligations.
- e) Where the husband is either insane, cruel, impotent, suffering from leprosy or a venereal disease or where he is captured by war enemies.
- f) In cases of extreme or severe poverty.

Under Judicial divorce, when the divorce has been pronounced by court, both spouses are required to register under the Marriage and Divorce of Mohammedans Act and this should be done within one month of the pronouncement of the divorce. However failure to register will not invalidate a valid divorce or vice versa.

